

MINUTES

COMPTE RENDU

Thirty-Fourth Meeting of the International Committee of Legal Metrology – Tunis, 6–8 October 1999

Trente-Quatrième Réunion du Comité International de Métrologie Légale –
Tunis, 6–8 octobre 1999



ORGANISATION INTERNATIONALE
DE MÉTROLOGIE LÉGALE

INTERNATIONAL ORGANIZATION
OF LEGAL METROLOGY



International Organization of Legal Metrology

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THIRTY-FOURTH MEETING
of the
INTERNATIONAL COMMITTEE OF LEGAL METROLOGY
6–8 October 1999 - Tunis

The International Committee of Legal Metrology was convened by its President, Mr. Gerard J. Faber, and met from 6th through 8th October 1999 in the Abou Nawas Hotel, Tunis.

The meeting was officially opened by Mr. Mondher Zenaïdi, Tunisian Minister of Commerce.

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– Attendance –

Member States

Algeria	N. Boudissa N. Hamiham (Ms.)	CIML Member
Australia	J. Birch	CIML Member
Austria	A. Leitner	CIML Member
Belgium	H. Voorhof	CIML Member
Brazil	C.L. Leal Moreira da Silva	
Bulgaria	I. Temniskov	CIML Member
Cameroon	O. Liman H. Ela Essi	CIML Member
Canada	A. Johnston G. Vinet	CIML Member
China (P. Rep. of)	Zhao Tong Han Jianping	
Cuba	M. Antunez Ramirez	CIML Member
Cyprus	G. Tsiartzazis	CIML Member
Czech Republic	P. Klenovský	CIML Member
Denmark	P.C. Johansen	CIML Member
Egypt	S.M. Mekawy Sharef	
Ethiopia	Berhanu Werede	CIML Member
Finland	T. Valkeapää	
France	J.F. Magana G. Lagauterie	CIML Member
Germany	M. Kochsiek W. Schulz W. Gögge H. Wallerus	CIML Vice-President
Hungary	P. Pákay K. Schmalhofer	CIML Member
Indonesia	R. Simanullang M. Hamim Ruba'i	CIML Member
Ireland	P. Farragher	CIML Member
Israel	Z. Dori (Mrs.) G. Behar	

Japan	T. Sakurai T. Kojima	CIML Member
Korea (Rep. of)	Chung Choon-Ki Kim Hong Kwon Oh-Uk Park Jong-Sun Moon Seok-Jun	
Macedonia	Z. Grkov R. Josifovski A. Ljupco	CIML Member
Morocco	A. Laamoumri	
Netherlands	G.J. Faber D. Goense G.H. Engler	CIML President
Norway	H. Kildal	CIML Member
Poland	K. Mordziński	CIML Member
Portugal	J.N. Cartaxo Reis	CIML Member
Romania	P. Darvari	
Russia	L.K. Issaev A. Astashenkov V. Mardin	CIML Member
Saudi Arabia	Abdul-Mohsen M. Al-Yousef Mohamed S. Al-Suhaimi	
Slovakia	J. Orlovský	CIML Member
Slovenia	V. Hrovat	CIML Member
South Africa	B.E. Beard S.H. Carstens	CIML Member
Spain	A. Garcia J.A. Robles	CIML Member
Sweden	S. Nyström	CIML Member
Switzerland	B. Vaucher	CIML Member
Tanzania	A.H.M. Tukai	CIML Member
Tunisia	G.E.M. Annabi (Mrs.) M. Ben Hassine M. Labidi M. Moez Jaoua M. Fekiri	CIML Member
United Kingdom	S. Bennett M. Birdseye	CIML Member
USA	S. Chappell	CIML Vice-President

Yugoslavia	M. Pešaljević Z.M. Marković	CIML Member
Zambia	F.M. Sinyangwe	CIML Member

Liaison Institutions

APLMF	J. Birch
COLAMEL	H.R. Polverini
COOMET	L.K. Issaev
IOLMF	J. Birch
SADCMEL	B. Beard
WELMEC	S. Bennett
WTO	V. Liu (Mrs.)

Corresponding Members

Albania	L. Këllezi
Argentina	H.R. Polverini
Malaysia	Md Nor Md Chik
Chinese Taipei	Wang Chun-Lin
Uruguay	A. Navarro Arana
	L. Garcia y Santos

CIML Immediate Past-President	K. Birkeland
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BIML	B. Athané A. Szilvássy I. Dunmill C. Pulham
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Delegated votes:	Belarus to Russia Italy to France Monaco to France
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Note: Proxies were received from Kazakhstan and Kenya after the closure of the meeting.

– Opening addresses –

Mr. Mondher Zenaïdi, Tunisian Minister of Commerce

Mr. President of CIML,
Mr. Director of BIML,
Representatives of OIML Member States,
Honorable guests, Ladies and Gentlemen,

Allow me first of all to express my pride and happiness in delivering the inaugural speech at this, the 34th CIML Meeting, that is this year being held in Tunis. I would like to take this opportunity to express my gratitude to the OIML for having chosen Tunisia to host its meeting.

My thanks equally go to the organizers of this meeting, which undoubtedly constitutes an appropriate opportunity for all those concerned with legal metrology to study issues related to this matter due to their importance for consumers and enterprises alike.

Over the past years the world has witnessed important developments consisting mainly of the emergence of globalization of the economy, regional gatherings and important scientific developments, especially in the technological field and other areas including telecommunication and computer sciences. The phenomena of economic globalization, fierce competition and the opening up of international markets allow only products of a very high quality produced at lower costs to enter markets in the light of a new global economy in which high quality and economic efficiency constitute the cornerstones of exchanges.

In the midst of these changes, Tunisia has, since the Change of the 7th of November and under the leadership of President Zine El Abidine BEN ALI, implemented an integrated program to liberalize and reform our economy by implementing a market economy system, liberalizing foreign trade, regulating internal trade and providing incentives for individual initiatives in industry, trade, agriculture and services.

All these reforms have led to the consolidation of economic productivity and to respectable

rates of development. Over the latest decade the GDP has increased by approximately 5 % at constant prices and by 6 % in non-farming sectors; exports increased by 7 % at constant prices.

These reforms equally concerned legal metrology, whose importance nobody is oblivious to, as a means to protect consumers and promote domestic and foreign trade thanks to the use of accurate accredited measuring instruments and the use of scientific methods governed by law. His Excellency the President of the Republic declared during the inauguration of the second congress of the Tunisian Association of Industrialists and Traders (UTICA), on November 29, 1995 the updating of the framework of legal metrology which dates back more than a century and the enacting of a new law.

This new law was indeed enacted last May. It facilitated a better definition of legal measuring units, the organization of their use by adopting the international system of measuring units called SI. This system is characterized by the harmony between its component elements and a better definition of measuring units, and is equally presently adopted by most OIML Member States, including Tunisia. This system will supersede the metric system that has been abandoned by developed countries for some years now.

In addition to clarifying prerequisites of manufacturing, repairing and marketing measuring instruments, this new law has clearly defined the various types of legal metrology verifications such as recognition of pattern approval, initial verification and statistical control of prepacked products in addition to technical verification. The aim is to give the consumer the right to demand the verification of a measuring instrument should he or she doubt its ability to accurately assess the measured quantities.

In addition to all this a consultative body, the National Council of Legal Metrology, has been set up. It comprises representatives of all the

ministries concerned with measuring activities. Its tasks consist essentially in encouraging research in and the promotion of legal metrology, the development of training, a better dissemination of information and encouraging cooperation and the exchange of expertise between national and international organizations.

We have equally consolidated the legal metrology departments by providing them with competent staff, and have set up an integrated training program in addition to creating a technical branch at the National Institute of Applied Sciences and Technology to train technicians in metrology. The first group of students has graduated this year and they will undoubtedly contribute to the success of the upgrade program implemented by the Tunisian State thanks to the strong will of its President BEN ALI to introduce quality systems according to ISO 9000 and to monitor the role of metrology in enterprise as a prerequisite for high quality.

Besides, other measures have been taken to set up laboratories for the calibration of measuring and weighing instruments and containers to ensure that the verification tools used by metrology agents are accurate and in conformity with international standards. This is in addition to the preparatory work underway for the implementation of a national laboratory for the testing of measuring instruments, in conformity with International Recommendation R 76 issued by your Organization.

Tunisia was among the first countries to join the OIML and to consistently take part in its activities. It has made efforts to consolidate the orientations of the OIML as it believes in the need to coordinate actions in this field at international level to facilitate transactions and to eliminate technical obstacles that hinder trade. Tunisia's chairmanship of the OIML Development Council is at the same time an honor bestowed upon our country and bears testimony to the good reputation Tunisia enjoys within international organizations. We will do our utmost to coordinate efforts with all the countries of this Development Council to implement its program so that these countries may keep pace

with the development that metrology is witnessing and to make the Council the best forum for those entrusted with metrological verification by giving them the opportunity to take part in training programs.

I would like to take this opportunity to hail the delegations from the shores of the Mediterranean who took part in the Round Table held on Monday for their efforts, the results they have obtained and the ideas they have put forward. This Round Table constituted a forum to study the appropriate solutions to the problems relating to metrology in general and the methods and ways of verifying measuring instruments from their design to their marketing nationally and internationally. This initiative equally constitutes a framework for setting up a cell of cooperation between both shores of the Mediterranean to promote the activities of metrology and the structures entrusted with legal metrology in this area. It undoubtedly constitutes another model for consolidating cooperation between the countries that took part in this meeting.

Ladies and gentlemen,

In conclusion, I would like to pay tribute once again to the OIML for the tremendous work it has been doing to promote legal metrology at all levels and to provide experts with information and advice concerning this field in general and the methods of verifying the different measuring instruments in particular.

I would equally like to congratulate the Development Council for all its efforts and actions carried out for the benefit of developing countries, for training their experts, and for the consolidation of the infrastructures of the departments entrusted with implementing the legislation and recommendations concerning legal metrology.

My warm thanks go to all of you and may your meeting be crowned with success.

I equally wish all the participants a pleasant and agreeable stay in our country. Thank you for your attention. ■

Mr. Gerard J. Faber, CIML President

Mr. Minister of Commerce,
Ladies and Gentlemen,
Dear Colleagues,

It is my great pleasure to welcome you to this the 34th Meeting of the International Committee of Legal Metrology and I would like to immediately express my sincere thanks to all those who, here in Tunis, have played a role in the preparations for this Meeting. I am sure that their efforts will be fully recognized and that, at the end of the week, it will be my duty and pleasure to express the deep appreciation of the OIML community for such successful arrangements.

This Meeting obviously presents a number of very special characteristics. One of these is the fact that, for the very first time, the CIML meets on the African continent and in an Arabic country.

Up to now we have held Meetings either in Europe, North or South America, Asia and Oceania but, with the exception of OIML participation in meetings or workshops organized for example by UNESCO in Egypt or by ARSO in Togo, we have never held an important OIML meeting on the African continent.

I must say that there are a number of converging signals that show that the African continent in general, and Maghrebian countries in particular, are step by step occupying a significant place in legal metrology cooperation: just a few months ago a number of OIML representatives, including myself, attended a commemorative meeting in South Africa; before that, at the end of last year, a workshop on OIML R 76 had been organized by SADCMEI in Zimbabwe; I note too the development of regional or sub-regional bodies. I do hope that these are all strong signs indicating the rapid development of metrology in this region.

The other specific features of this CIML Meeting are the following:

- for the very first time regional legal metrology organizations as well as regional bodies having activities connected with legal metrology have been officially invited to attend a CIML Meeting; of course, up to now, a number of CIML Members were in fact also representing certain regional

bodies at CIML Meetings; however, this invitation should not be considered as a formalization and an officialization of the situation; in fact, we would be glad that regional bodies consider it as an opportunity to develop their own inter-regional cooperation;

- also for the very first time, OIML Corresponding Members have been formally invited to attend a CIML Meeting; this is the proof of the interest that the OIML has in making sure that as many countries and economies as possible will benefit from its activities and participate in them according to their resources.

Apart from these new characteristics, this CIML Meeting will - once again - have to examine matters and to make decisions of significant importance for the life of our Organization.

Following the Birkeland Report that was finalized one year ago, the Presidential Council and the BIML have identified a number of actions which should be carried out rapidly or in any case over the next two or three years. Proposals were sent to you some months ago and I am confident that you have been able to carefully examine them with a view to accepting the proposed work plan, improved and supplemented in line with any comments you may have.

Matters of development must also be duly considered: yesterday, a meeting of the OIML Development Council was held under Mrs. Annabi's chairmanship, and we eagerly await the Council's report and proposals for future work.

Also on the agenda are the traditional items dealing with conformity assessment, mutual recognition of test results, certification, technical activities, and so on.

Concerning cooperation between the OIML and other international and regional bodies, as already mentioned, we will be having discussions concerning legal metrology activities at regional level. We will also have discussions concerning liaisons between the OIML and the WTO, with the participation of a representative of this Organization, Mrs. Liu, from the WTO Technical Barriers to Trade Committee, who will join us this afternoon or tomorrow morning at the latest.

A new item on our agenda deals with the activities of the Presidential Council. For the

sake of transparency it has been considered appropriate that the CIML President gives a report about the Presidential Council at each CIML Meeting. It will then be evident that the Council is an advisory body and that all decisions still remain the responsibility of the CIML, except in urgent cases where the CIML President has to make immediate decisions according to the OIML Convention.

Since this CIML Meeting is the last one before the Eleventh International Conference of Legal Metrology, we will have to start preparing this important event and to consider financial and other matters which will result in decisions being made by the Conference.

Another very specific matter will have to be carefully examined during these three days: the preparation for the selection and appointment of a new Director to succeed Mr. Athané. Several months ago I sent you a proposal endorsed by the Presidential Council. During this Meeting I will inform you of the reactions I have received (of which there are very few), but do not hesitate to contact me should you wish to express your views.

Since I have raised the question of key human resources, I think that it is perhaps appropriate to introduce Item 4 of the agenda straight away, which deals with the CIML Presidency. You will thus have the possibility to reflect about the situation, to exchange your views during the coffee breaks, lunches and dinners, and to be ready for a discussion which will prepare you for the decision that you will have to make next year.

I myself retired at the end of last year as Director General of the Dutch Metrology Institute, but I maintain close links with metrology in general and legal metrology in particular through my new position of Advisor to the Dutch Government for these matters. My Government has also confirmed my role as CIML Member for the Netherlands, and I maintain close links with the NMI experts responsible for OIML affairs, which enables me to keep in touch with the various aspects of OIML activities.

As a consequence of this new situation, I can now devote far more time to the OIML than was possible up to last year, and I must say that I am very pleased with this situation considering the personal interest that I have in OIML affairs.

As you know, my present term will come to an end in December 2000 and the CIML must

start reflecting about what action to take. I have discussed this situation with some of you, including the two Vice-Presidents, and I would like to inform you very simply that, if you so wish, I am ready and willing to continue as CIML President.

Re-conducting my position would also maintain the necessary continuity over a period during which there will be a significant change in the BIML's management.

However, the Committee may also consider the possibility of appointing a new President who will take over from me at the end of next year. If so, it would be my responsibility to start identifying possible candidates and to make it possible for you to make the right choice at the next Meeting. Anyway, you now have three days to consider the various aspects of this topic.

A similar situation exists concerning Vice-President Chappell, whose term will also come to an end next year. Under item 4 of the agenda I will give the floor to Sam so that he may express his views concerning his position.

Before concluding, since I have introduced a matter connected with the composition of the Committee, I will now welcome the new CIML Members who have been appointed since the Seoul Meeting. These are:

- for Ireland, Mr. Farragher,
- for Japan, Mr. Sakurai,
- for Kazakhstan, Mr. Turspikov,
- for the Republic of Korea, Mr. Park,
- for Romania, Mr. Ocneanu,
- for Slovakia, Mr. Orlovský, and
- for Spain, Mr. Garcia.

Concerning Finland, we have been informed that Mrs. Juntilla has left her legal metrology functions but we have not yet received any information concerning a new CIML Member.

Ladies and Gentlemen,

I would like to reiterate my thanks to our Tunisian hosts and to congratulate them for the excellent preparations for our meetings. I also would like to express my wish to all participants that, thanks to their active contribution, this CIML Meeting will be as fruitful as possible for the future of the OIML.

Thank you for your attention. ■

- Roll-call - Quorum -

The roll of Delegates was called. It was established that forty-eight CIML Members were present or represented out of a total of fifty-six. The quorum of three-quarters was thus attained.

- Approval of the agenda -

The Committee approved the following agenda:

Opening addresses
Roll-call - Quorum
Approval of the agenda

- 1 Approval of the minutes of the 33rd CIML Meeting
- 2 Member States and Corresponding Members
 - 2.1 New Members - Expected accessions
 - 2.2 Situation of certain Members
 - 2.3 Implementation of the decision made by the Committee at its 33rd Meeting concerning increased participation of Corresponding Members in certain OIML activities
- 3 Financial matters
 - 3.1 Adoption of the Auditor's report for 1998
 - 3.2 Examination of the financial situation for 1999
 - 3.3 Budget for the year 2000
- 4 CIML Presidency
- 5 Director of the Bureau
- 6 OIML Long-term policy: implementation of the decisions made by the Committee at its 33rd Meeting concerning the output of the Braunschweig International Seminar and of the Birkeland Report
- 7 Report on the activities of the Presidential Council
- 8 Development Council
 - 8.1 Report on the Development Council meeting of October 5, 1999
 - 8.2 Work program of the Development Council
 - 8.3 Liaisons with relevant international and regional organizations
- 9 Liaisons with international and regional organizations
 - 9.1 World Trade Organization (WTO)
 - 9.2 Standardization organizations (in particular: ISO, IEC, UN/ECE)
 - 9.3 Accreditation organizations (in particular: ILAC and IAF)
 - 9.4 Regional Legal Metrology Organizations (RLMO's)
 - 9.5 Regional organizations having activities connected with legal metrology (in particular: European Commission and CEN/CENELEC)
 - 9.6 Others (BIPM, WHO, ...)
- 10 Activities linked with mutual recognition of test results, accreditation, etc.

- 11 Technical activities
 - 11.1 Work program of OIML TC's/SC's
 - 11.1.1 Establishment of new SC's and their work programs
 - splitting up of TC 15 (*Measuring instruments for ionizing radiations*) into two subcommittees;
 - establishment of TC 3/SC 5; disbanding of the working group on accreditation and of the TAG_{cert}
 - 11.1.2 New work projects proposed by TC's and SC's
 - 11.1.3 Developments within TC 3/SC 4
 - 11.2 Examination of the situation of certain TC's and SC's
 - 11.2.1 Vacant TC's and SC's
 - TC 13
 - TC 8/SC 1
 - TC 16/SC 1
 - 11.2.2 Allocation/transfer of responsibility
 - 11.2.3 Proposals on future and urgent technical activities
 - establishment of a new TC or SC on *Software*
 - revision of D 1 (*Law on metrology*)
 - measurement uncertainty in legal metrology
 - prepackages
 - 11.3 Approval of draft Recommendations
 - 11.4 Availability of OIML publications on paper, electronic media and via Internet; use of Internet within the OIML
- 12 OIML Certificate System
 - 12.1 General information
 - 12.2 New Recommendations applicable within the System
- 13 Preparations for the Eleventh Conference
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 - 13.2 Proposed agenda
 - 13.3 Examination of a preliminary proposal for the 2001–2004 budget taking into consideration BIML staff requirements for that period
- 14 Report on BIML activities
- 15 Future Meetings
 - 15.1 35th CIML Meeting (2000)
 - 15.2 36th CIML Meeting (2001)
- 16 Other matters
- 17 Adoption of decisions

Closure

Thirty-Fourth Meeting of the International Committee of Legal Metrology

– Minutes –

1 Approval of the minutes of the 33rd CIML Meeting

The minutes of the 33rd CIML Meeting were approved without modification.

2 Member States and Corresponding Members

2.1 New Members - Expected accessions

Mr. Athané said that no new full membership could be announced, although the accession of Croatia as a Member State was progressing, according to information received by the Bureau. Concerning Corresponding Members, Mr. Athané reminded the participants that several countries had been admitted or readmitted (following their delisting for not having paid their subscriptions for over three years) since the last CIML Meeting.

Concerning expected accessions, Mr. Athané said that certain Corresponding Members were considering the possibility of joining the OIML and that the Bureau had recently received a visit from the Embassy of Uzbekistan in Paris, with a view to a possible accession.

2.2 Situation of certain Members

Mr. Athané said that two or three OIML Member States were late in the payment of their contributions to the OIML and could be automatically delisted according to the OIML Convention. However, contacts with the legal metrology bodies of these countries had shown that there was a possibility for them to pay at least a part of their dues. Therefore, no action should be initiated at this time but decisions should be made at the next Conference.

2.3 Implementation of the decision made by the Committee at its 33rd Meeting concerning increased participation of Corresponding Members in certain OIML activities

Mr. Athané reminded the participants that two decisions had been made by the Committee at its 33rd Meeting.

Concerning the possibility for Corresponding Members to attend CIML Meetings, Mr. Athané noted that five of them were represented at this Meeting. Several other Corresponding Members had manifested their interest but were unable to attend, mainly for financial reasons.

Concerning their registration as observers in certain OIML TC's/SC's, Mr. Athané said that two or three Corresponding Members had decided to benefit from this possibility in 1999 and that the situation would probably develop progressively in 2000.

It was therefore possible to conclude that the CIML decision had been well received by Corresponding Members but that its implementation was progressive and had not resulted in any excessive extra work either for the OIML TC's/SC's concerned or for the BIML.

3 Financial matters

3.1 Adoption of the Auditor's report for 1998

The Auditor's report for 1998 was adopted without comment.

3.2 Examination of the financial situation for 1999

Mr. Athané reminded the participants that, as usual, a paper setting out the expected expenses and receipts for 1999 as well as the corresponding decisions made by the Conference in 1996 had been sent to all CIML Members in December 1998. This paper showed that the financial situation of the Organization was safe and well in line with the Conference's decisions, provided that the 1999 contributions were paid on time.

Mr. Athané added that he had no further comments to make at this time, except that the payment of the 1999 contributions was significantly delayed compared with previous years, this being probably due to the fact that a number of countries were facing difficult economic situations.

3.3 Budget for the year 2000

Mr. Faber reminded his colleagues that this matter had been carefully examined by the Presidential Council and that a paper had been prepared by the Bureau following the conclusions of the Council's examination. These conclusions were that the 2000 budget as decided by the Conference should not be changed, i.e. that the almost 3 % increase in the budget and (since there were no additional Member States) in the contributions, should be maintained.

Mrs. Annabi felt that as a conclusion to discussions held during the recent meeting of the OIML Development Council and in order to take into consideration the economic difficulties faced by most developing countries, the 2000 contributions should be maintained at the same level as 1999.

Following a comment made by Mr. Johnston, Mr. Faber pointed out that the OIML should be very careful concerning increasing its financial resources for the next four years but, at the same time, additional activities and responsibilities and a need to accelerate technical work would surely appear in the near future. Therefore, if a near zero-growth was to be decided for the next financial period, it would be safer and more productive to start from the 2000 budget as decided by the 1996 Conference rather from a lower budget.

Mr. Athané pointed out that when adopting the 1997–2000 budget, the Conference had accepted an almost 3 % annual increase with roughly 1 % to increase OIML resources and 2 % to balance inflation. At present, the annual rate of inflation in France was very low, of the order of 0.5 %.

Therefore, it would be possible for the Committee to decide to slightly decrease the 2000 budget to allow for the decrease in the annual rate of inflation, as provided for by the Conference in 1996.

Mr. Boudissa pointed out the difficulties faced by many developing countries and therefore strongly supported the views expressed by Mrs. Annabi.

Mr. Birch supported maintaining the budget as decided by the Conference since (as to be discussed under other items on the agenda) the total activity and responsibility of the OIML will increase in the future, responding to the pressures of globalization, privatization, market forces, competition policy, trade facilitation, and the development of regional organizations. The appropriate resources for the OIML should not be discussed before these long-term policy issues. There were very significant challenges for legal metrology resulting more from international than national pressures that had to be responded to first at international and global levels. It was true that resources of national legal metrology bodies were generally decreasing but, at the same time, many governments were willing to accept to finance actions of specific interest, and the OIML activity should be one of these. In addition, it should be recognized that the rate of inflation in France was perhaps not an accurate index of the increases in OIML expenses. For example, salaries could increase globally by more than inflation. To conclude, Mr. Birch said that if legal metrology was to maintain its position, it needed strong commitments from governments, these commitments being very much determined by the resources governments were prepared to put into it. Mr. Faber fully supported these views.

Mr. Magana pointed out that the decision to be made concerning the 2000 budget was a separate issue, which should not be too closely connected with a more general discussion on the financial needs of the OIML. In fact, the Conference's decision to allow the budget to be reviewed by the Committee if the annual inflation rate was significantly different from 2 % was mainly intended to protect the OIML against a big increase in inflation. It was true that governments were trying to reduce their operating budgets; however, governments might decide to put emphasis on certain strategic actions, which was presently the case for metrology in France. Whether or not OIML activities should benefit from this kind of strategic recognition should be decided during the next Conference. Mr. Magana concluded by saying that he could accept maintaining the 2000 budget as it had been decided by the Conference, although he well understood the views expressed by representatives of developing countries.

Mr. Issaev supported the conclusions of the Presidential Council concerning the 2000 global budget but asked whether it would not be possible to maintain the contributions of developing countries at their present level. Mr. Faber replied that it was impossible to fix two levels of contributions, one for developed and one for developing countries.

Mr. Johnston asked whether it would not be possible to use the reserve fund (which is currently significant) to offset the increase in contributions. Mr. Faber replied that according to the OIML rules, the reserve fund should not be used to cover current expenses.

Following a vote, the 2000 budget was maintained as fixed by the 1996 Conference, with five negative votes from Algeria, Cameroon, Egypt, Morocco and Tunisia.

4 CIML Presidency

Note: Discussions under this item were held in the absence of BIML staff and were not recorded. Consequently, only summaries of information delivered by Vice-President Chappell and by President Faber are given below.

1) CIML President

Mr. Chappell said that the CIML had noted that President Faber would accept a reconduction of his mandate for the period 2001–2006 and that no other candidacy had been put forward during the meeting. However, it was decided that some time should be left for CIML Members to declare their candidacies. To this end, they should consult their authorities for support and notify Mr. Chappell of their candidacies in writing, together with documentation summarizing their role in metrology and their objectives and intentions in serving as CIML President over the next six-year period. The deadline for applications would be June 30th, 2000.

2) CIML First Vice-President

Mr. Faber said that the Committee, having noted that Vice-President Chappell was not willing to renew his mandate, decided that Prof. Kochsiek would become First Vice-President at the time of the next CIML Meeting and that, on this occasion, a second Vice-President would be elected amongst candidates who would have made themselves known in writing to President Faber before June 30th, 2000 or who would have been proposed by other CIML Members to President Faber within the same deadline.

5 Director of the Bureau

Note: Discussions under this item were held in the absence of BIML staff and were not recorded. Consequently, only a summary of information delivered by President Faber is given below.

Mr. Faber said that the Committee had approved the terms of his letter dated 1999.03.09 about which only one written comment from Mr. Johnston had been received concerning (i) the overlap duration, and (ii) the financing of the additional position from the moment the new Director joins the BIML until Mr. Athané's departure at the end of 2002. In addition, Mr. Bennett requested that the duration of the transition period between the present and the new Directors should be fixed at the time when the new Director is appointed.

After discussions, it appeared that the proposal was now acceptable to all CIML Members, the duration of the transition period having to be fixed by Mr. Faber as suggested by Mr. Bennett.

Concerning the appointment of the new Director, the Committee established a Selection Committee comprising the CIML President and the two Vice-Presidents, Mrs. Annabi, Mr. Birch and Mr. Johnston and requested its President to start the procedure immediately after this CIML Meeting with a view to presenting one sole candidate at the 2000 Meeting.

6 OIML Long-term policy: implementation of the decisions made by the Committee at its 33rd Meeting concerning the output of the Braunschweig International Seminar and of the Birkeland Report

Mr. Faber introduced this item which he considered as one of the key points of this Meeting. He reminded the participants of the long strategic discussions resulting from the Birkeland Report and the International Seminar held in Braunschweig in June 1998. As a result of these discussions, a list of actions had been drawn up by the Bureau and discussed by the Presidential Council before being submitted to the Committee for examination and approval.

Mr. Birch expressed his general satisfaction for this paper, in particular because the needs of Regional Legal Metrology Bodies are considered appropriately, and because new important subjects

of work are mentioned, e.g. that on software. He also said that an essential point to be carefully examined was that dealing with the coordination role of CIML Members.

Mr. Faber then reviewed the proposed paper page by page and the following comments were made:

- the review of the work program of OIML TC's/SC's should also take into consideration the specific needs of developing countries;
- following a question from Mr. Beard, Mr. Chappell confirmed that TC 3/SC 5 activities would not only be connected with type evaluation, but also with verification, with e.g. the development of a paper concerning the use of manufacturers' quality systems and conformance declarations for initial verification of individually produced instruments;
- at the request of Mr. Magana, the use of the term "mutual" connected with e.g. recognition of type approval should be reconsidered since a country may quite well recognize type approvals issued by another country without any "mutual" recognition by the second country of type approvals issued by the first country; in this connection, Mr. Vaucher suggested considering the agreement being signed within the Meter Convention;
- Mr. Bennett suggested that cooperation with IAF be established when dealing with product certification;
- Mr. Issaev suggested that the activities of laboratories other than those working in the field of legal metrology be considered in the OIML papers dealing with recognition of test results, in so far as these laboratories may be involved in e.g. trade activities;
- Mr. Gögge indicated that the work on an OIML system for marking prepacked products was very important and would be very seriously considered by Germany; in this connection, Mr. Kildal mentioned the work being developed within the European Union and suggested that the OIML should wait for the completion of this work. Mr. Chappell mentioned that he had recently had a meeting with European experts and that he would report about this under another item of the agenda;
- Mr. Birch pointed out the urgency of revising D 1 *Law on Metrology* and of the development of papers dealing with the relationship between legal metrology and other aspects of metrology, including the legislative aspects connected with the agreement being signed within the Meter Convention: in many countries regulations exist which require measurements to be traceable to national measurement standards; therefore, the recognition of calibration certificates may create juridical problems;
- Mr. Berhanu Werde pointed out that his country, just as many others, was currently reviewing its law on metrology; therefore, the revision of OIML D 1 was urgent and should be completed as early as possible. Mr. Chappell said that TC 3 had taken note of this urgency and would take action to implement this request. Mr. Magana said that the matter had been discussed during both the Development Council Meeting and the Euro-Mediterranean Round Table and that a clear need to urgently revise OIML D 1 had been expressed, taking into consideration two supplementary aspects: (i) administrative organization of legal metrology and (ii) the use of quality tools such as accreditation and certification of quality systems for the implementation of the *Law on Metrology*;
- Mr. Issaev suggested that the revision of the *Guide for CIML Members* be completed as soon as possible;
- Mr. Klenovský asked whether an acceleration of the work, especially concerning communication with the BIML, could not result from a more systematic use of Internet and of electronic media; Mr. Athané replied that this important matter would be dealt with more completely under item 11.4 and pointed out that the matter had to be considered carefully since not all OIML Member States yet had the possibility to fully use Internet and electronic communication means. The situation was perhaps different at the level of OIML TC's/SC's where the P-members were mainly industrialized countries that had the facilities to use these modern communication means;

- on behalf of WELMEC, Mr. Bennett reported on a meeting of representatives of regional legal metrology organizations which he had convened the day before; it had been concluded that communication between these RLMO's and with the OIML should be improved. To this end, use of Internet should be developed; mutual information could mainly deal with new publications, training actions, etc. and it should also be considered whether this mutual information should exist between RLMO's directly or through the BIML;
- Mr. Chappell requested information concerning cooperation between the OIML and the European Commission concerning the development of OIML normative documents giving a presumption of conformity with the requirements of the European Measuring Instruments Directive; it was indicated that this would be covered under item 9.5 of the agenda; in the same way, cooperation with the WHO would be discussed under item 9.6;
- concerning cooperation with consumer organizations, Mr. Nyström pointed out that this was very difficult at national and regional levels, and therefore perhaps even more difficult at the international level; he also suggested that cooperation with industry, including users of measuring instruments and trade organizations should be developed at international level just as it exists at national level. Mr. Faber said that it would perhaps be difficult to identify such industrial and trade organizations operating at international level and requested more time to examine the matter. Mr. Chappell pointed out that input from industry already existed, e.g. with CECIP, as well as through the cooperation between OIML and ISO/IEC; in this connection Mr. Athané reported that the Bureau had recently contacted many international and regional organizations of manufacturers and users of measuring instruments with a view to increasing their participation in OIML technical activities;
- considering the need to develop OIML activity in the field of prepacked goods, Mr. Birch suggested developing cooperation with the Codex Alimentarius;
- Mr. Magana pointed out that actions connected with the OIML Development Council and with training had been recognized as very important during the recent Development Council Meeting and Euro-Mediterranean Round Table; in particular, the establishment of a database of experts was considered very important at international level, as well as the development of training systems which should be harmonized at international level;
- concerning training, Mr. Wallerus said that the revision of OIML D 14 was starting, that a list of terms of reference in the field of training would be developed in cooperation with Algeria, and that the matter of certification or validation of training systems would be examined in cooperation with Mr. Birch;
- Mrs. Annabi suggested that a "legal metrology day" should be established by the OIML, on the occasion of which national legal metrology bodies would develop promotional activities in the direction of manufacturers and users of measuring instruments, consumers, etc.; in this connection Mr. Boudissa mentioned that the National Legal Metrology Office of Algeria organizes an annual national day with the participation of representatives of public administration and of manufacturers and repairers of measuring instruments; the most recent one focused on the theme "legal metrology for consumer protection" which attracted many consumer associations;
- Mr. Magana suggested that development bodies such as the World Bank should be made sensitive to the importance of legal metrology so that they include it in their development programs.

As a conclusion to these comments, Mr. Faber requested the Bureau to review the paper describing OIML actions for the next two or three years and to reissue it in an appropriate format.

7 Report on the activities of the Presidential Council

Mr. Faber reminded the participants that the Birkeland Report contained proposals for the establishment of councils for various matters (coordination with RLMO's, strategic group for the Development Council, etc.). These proposals were carefully examined by the OIML Presidency and Presidential Council and the general feeling was that it would not be appropriate to multiply the number of such councils, but to concentrate responsibilities within the Presidential Council. However, it should be clearly recognized that the Presidential Council should remain as a purely advisory body, decision-making remaining - as provided for by the OIML Convention - the prerogative of the CIML and, under specific circumstances, of the CIML President.

As an example of the role of the Presidential Council, Mr. Faber gave an account of the February 1999 Presidential Council meeting and enumerated the topics discussed, most of them being preparatory discussions for this CIML Meeting. The Presidential Council also met in Tunis just before the CIML Meeting to discuss matters connected with the budget, the CIML Presidency and the BIML Director.

Mr. Faber also reminded the participants that in the paper submitted under item 6 of the agenda, there was an annex dealing with the terms of reference and the composition of the Presidential Council.

Noting that there was no comment concerning his report, Mr. Faber concluded that it was considered as accepted by the Committee.

8 Development Council

8.1 Report on the Development Council meeting of October 5, 1999

8.2 Work program of the Development Council

8.3 Liaisons with relevant international and regional organizations

Mrs. Annabi, Chairperson of the OIML Development Council, summarized the meeting which was attended by 35 Member States, six RLMO's (plus the emerging Euro-Mediterranean Cooperation), five Corresponding Members and Representatives of the Palestinian Authority.

Since the Seoul meeting, a number of topics had been examined by Mrs. Annabi in cooperation with the Bureau. A letter was sent to Members of the Development Council and to all other CIML Members in December 1998, in order to propose directions of work and to ask for information and remarks. Twenty-seven replies were received (comments were expressed by eleven countries), following which a questionnaire was sent to Developing Countries in order to better perceive their problems: eight replies were received to this, and it was expected that additional replies would be received in the future.

Needs and problems identified through this questionnaire and confirmed during both the Development Council meeting and the Euro-Mediterranean Round Table were mainly those of training and its validation, technical assistance and its financing, documentation and equipment. In fact, these topics had constituted the basis of the Development Council activity for many years; however, only the working group on training had been correctly operating. Concerning the two other working groups, one (external liaisons) was disbanded and the scope of the second one (information and equipment) should be reviewed with a view to making appropriate decisions within one year.

Mrs. Annabi indicated that each regional organization had been invited to present a report on its activities and it was concluded that cooperation between these regional bodies and the Development Council should be increased.

Concerning the work program for 2000–2001, it was pointed out that the legislative aspects of legal metrology were of significant importance for developing countries and it was decided to request the CIML to accelerate the revision of the OIML *Law on Metrology* (D 1). It was also decided that the Development Council should make sure that the views of developing countries are adequately represented in the technical work of interest for these countries.

Concluding her presentation, Mrs. Annabi mentioned various actions of interest for developing countries, including cooperation between the UNIDO, OIML and PTB in favor of five least developed countries of Africa, an increased cooperation with ISO/DEVCO, and a need to develop contacts between the OIML Development Council and international and regional funding agencies.

Mr. Dunmill presented the draft resolutions of the Development Council Meeting, which were submitted for approval by Members of the Development Council and endorsement by the CIML. Following discussion, the following final resolutions were approved/endorsed:

The OIML Development Council:

- 1 took note of a report presented by its Chairperson and by the BIML concerning reactions of Council Members to a letter from Mrs. Annabi and to an inquiry made by the BIML, and requested the BIML to use these reactions in the final drafting of the Council work program for 2000–2001;
- 2 took note of a report from Dr. Wallerus concerning WG 1 activities on training (of which the participation list was updated on this occasion) and expressed its appreciation for both the accomplished and the ongoing work; the Council also took note of proposals from Mr. Birch concerning the possible certification or validation of training courses and facilities and requested Dr. Wallerus and Mr. Birch to reflect on the proposal;
- 3 disbanded WG 2 on external liaisons because of the lack of activity of this WG and decided that this matter should be under the direct responsibility of its Chairperson;
- 4 requested Dr. Issaev to try to accelerate the work of WG 3 on information and equipment, possibly to split this WG into two WG's, one for information, one for equipment, and to report to the Council in order to permit it to decide whether to maintain this/these working group(s) or to adopt alternative solutions to perform the tasks;
- 5 requested the BIML to develop terms of reference and working methods for WG's attached to the Council;
- 6 noted the reports presented by the Conveners of regional organizations and suggested that they systematically take into consideration the aims of the OIML Development Council when developing their own work programs;
- 7 took note of information given by Prof. Kochsiek and Mr. Athané concerning a UNIDO-OIML-PTB program and decided to request the CIML to support OIML participation in this program; the Council recognized the need to ensure that consultants used in the program had appropriate legal metrology expertise (also see point 14 below);
- 8 took note of information given by Mr. Magana concerning an emerging cooperation in legal metrology in the Euro-Mediterranean region;
- 9 took note of a report from its Chairperson concerning the use of the Internet in assisting developing countries and requested Mrs. Annabi and the BIML to rapidly develop the ideas presented on this occasion, taking into consideration any comments submitted by Council Members during or after the Meeting;

- 10 requested the CIML to urgently initiate a revision of D 1 "Law on Metrology" in parallel with an action on the harmonization of national metrology legislation and requested the BIML to work on the organization of a seminar on these topics, including considerations on the administrative organization of legal metrology;*
- 11 requested the CIML to accelerate (or reactivate as appropriate) the work of TC's/SC's of specific interest to developing countries and to look at the possibility for the Development Council to be represented in this work;*
- 12 took note of a proposal aimed at placing lists of measuring instruments approved in other countries at the disposal of developing countries;*
- 13 took note of information delivered by certain Members and by its Chairperson concerning special activities connected with the Council's aims and encouraged them to pursue these activities;*
- 14 requested its Chairperson and the BIML to reflect on the possibility of establishing lists of experts whose competence will have been assessed in an appropriate manner;*
- 15 requested its Chairperson and the BIML to urgently develop a comprehensive work program for the 2000–2001 period and to submit it to Council Members for approval by correspondence before the end of 1999;*
- 16 decided to hold its next meeting in October 2000 in connection with the Eleventh OIML Conference;*
- 17 requested its Chairperson and the BIML to introduce an item relating to development assistance funding for legal metrology on the agenda of future Council meetings.*

9 Liaisons with international and regional organizations

9.1 World Trade Organization (WTO)

Mr. Faber introduced Mrs. Liu, Economic Officer at the World Trade Organization responsible for the secretariat of the Technical Barriers to Trade (TBT) Committee of the WTO. He remarked that this was not the first time that Mrs. Liu had been in contact with metrology and the OIML since she had already participated in the International Seminar on the social and economic role of metrology held in Braunschweig in June 1998. He also mentioned that in the plan of actions adopted the previous day by the Committee, cooperation with the WTO had been explicitly indicated as being of major importance for the OIML and since most trade transactions are measurement-related, there was a need for the OIML to identify those fields in which its activity might assist the WTO in reaching its goals.

Mrs. Liu then gave a presentation on WTO/OIML cooperation and on the main WTO activities.

The OIML had been an observer of the TBT Committee since November 1997 and the two Organizations were enjoying a very good working relationship. The OIML had participated in several important events of the TBT Committee and thus had the possibility to present its objectives and achievements to TBT Members, including their impact on trade facilitation. The WTO was established in 1995 continuing the work of the GATT to provide trade rules to facilitate trade. The agreement on technical barriers to trade was one of those agreements under the WTO, aiming at ensuring that activities related to mandatory technical regulations, voluntary standards and conformity assessment procedures did not create unnecessary obstacles to trade. For the purpose of transparency, WTO Members were required to fulfill notification obligations and establish national inquiry points. Another aim of the WTO was to improve market access. The fact that the OIML worked to prescribe necessary accuracy of measurement results and measuring instruments could promote product quality and competitiveness. This was also viewed as an important aspect of the capacity building of

developing countries to facilitate the products entering into the global market. In the same way, the fact that the OIML was operating a Certificate System for Measuring Instruments was connected with the fact that testing, certification and conformity assessment procedures were important areas of the WTO/TBT agreement. These facts showed how the work of the two Organizations was connected.

With a view to developing an improved understanding of the role of international standards under the TBT agreement, a TBT information session was organized in November 1998. It aimed at keeping international standardizing bodies informed of ongoing discussions on international standards within the TBT Committee and at increasing awareness of WTO Members of the activities of these bodies. Presentations were made by ten international organizations, including the OIML, ISO, IEC, ITU, WHO, FAO/Codex, etc. There were questions to these organizations, mainly on the openness of their programs, transparency of procedures for comments and decision making, application of adopted standards, when and how special problems of developing countries were taken into consideration, and the coordination of activities amongst these international standardizing organizations. Concerning the OIML, the TBT Committee was informed that the directives for developing International Recommendations were in line with paragraphs L, M and N of the *WTO/TBT Code of Good Practice for the Preparation, Adoption and Application of Standards*. In the same way, the cooperative agreement between the OIML and ISO/IEC to eliminate any risk of divergences and reduce duplication of work, as well as the existence of a special OIML activity for developing countries, were appreciated. Cooperation in and coordination of technical assistance work of the WTO and of the OIML should be developed.

Concerning recent activities of the WTO/TBT Committee, Mrs. Liu mentioned the workshop on information exchange about transparency provisions of the Agreement, the information session on international standards, the symposium on conformity assessment procedures, preparations for the Seattle Ministerial Conference, and the preparation for the second triennial review of the Agreement next year, about which Mrs. Liu gave detailed information. She mentioned that amongst the various items on the TBT work program, those dealing with international standards, conformity assessment procedures and technical assistance present much interest for most WTO Members. In particular, concerning international standards, the TBT Committee urged relevant international organizations to eliminate outdated standards and to make sure that new standards are developed taking into account the views of all parties concerned, including those of developing countries. To this end, cooperation between the WTO and relevant international bodies as well as amongst officials and experts in non-governmental standardizing bodies at national level were found to be essential. The TBT Committee also decided to explore ways and means of improving participation by WTO Members in the work of international standardizing bodies and of informing those bodies of the Committee's view on international standards. This was the reason to organize the information session already mentioned. Since the TBT Agreement encouraged WTO Members to use relevant international standards and guides and since it was recognized that these standards provide the possibility to remove unnecessary barriers to trade, there was a general wish within the TBT Committee that the bodies preparing international standards should follow certain guidelines to ensure the transparency, openness and impartiality in the development of standards. In fact, the credibility of a standardizing body depended on its working procedures. As a result of these considerations, the TBT Committee was intending to look at three proposals, from the USA, the European Community and from Japan, relating to the definition of international standards under the TBT Agreement and the working procedures of international standardizing bodies. This would of course apply to OIML Recommendations.

Concerning conformity assessment, the TBT Committee noted the growing concern with respect to the restrictive impact on trade of multiple testing and conformity assessment procedures and that the principle of "one standard, one test" and if required "one certification, one time" should be pursued to facilitate trade and reduce costs. The recognition of results of conformity assessment implied complex conditions concerning confidence in technical competence which, in most cases, demanded objective benchmarks. Use of common procedures defined in e.g. international standards in the operation of accreditation, testing inspection and certification bodies would be necessary to achieve the required confidence amongst Members in the field of conformity assessment. The TBT

Committee noted the value of ISO/IEC Guides, although certain difficulties of implementation may exist, and decided to pursue further discussions on this subject. The Committee also noted that there was a growing interest in concluding mutual recognition agreements (MRAs) but that concerns had been expressed on possible difficulties and problems associated with MRAs for developing countries because of reasons of cost, transparency, opportunity to enter into negotiations, etc. The TBT Committee decided to look at this carefully and to review the role of regional and international systems for conformity assessment and how these systems could contribute to solving the problem of multiple testing and certification and to allow developing countries to establish operational conformity assessment procedures.

Mrs. Liu, noting that a part of what she had described was related to legal metrology work, appealed to participants in this CIML Meeting to coordinate with their national trade authorities so that their experience could come back to the TBT Committee. At international level, the WTO Symposium on conformity assessment procedures held in June 1999 was intended to allow the TBT Committee to have a deeper understanding of the following issues: (i) relevant international guides and recommendations for conformity assessment, (ii) the type of conformity assessment procedures and conditions for their application, and (iii) the various approaches for the recognition of the results of conformity assessment procedures and the role of international and regional systems for conformity assessment. Thirty-five experts from testing laboratories, inspection, certification, accreditation, metrology and standardizing bodies as well as regional and international systems were invited as speakers and panelists. The OIML was one of those invited bodies and Mr. Szilvássy gave information on the OIML activities with relation to the interpretation and application of international standards in the OIML and on OIML projects that take into account the needs of developing countries. In the Chairman's report on the Symposium, it was recognized that conformity assessment procedures should not create unnecessary obstacles to trade and, at the same time, it was noted that effective conformity assessment procedures are necessary mechanisms to establish confidence between the different players in the market place. The Symposium included four sessions, as below.

The first session was related to relevant international guides and recommendations for conformity assessment and it was recognized that ISO/IEC Guides are widely used by developed and developing countries; it is noted that it was important to develop guides reasonably quickly so as to meet the needs of the market place. It was also noted that while the same international standard could in theory be used by different players of conformity assessment, variations in interpretation could lead to different applications, due to e.g. language or geographical differences. It was suggested that international trade could benefit from conformity assessment procedures which were transparent, impartial and based on international standards.

The second session dealt with various types of conformity assessment procedures and their condition of application. It was noted that third party evaluation of conformity was widely used, supported in many cases by national accreditation systems. It was used for conformity assessment to both voluntary standards and to mandatory technical regulations. Matters such as the harmonization of inconsistent accreditation procedures or a code of good practice for conformity assessment bodies were discussed.

Session three dealt with approaches with respect to the recognition of the result of conformity assessment procedures. It was noted that numerous mutual recognition agreements had been concluded and that several different types of MRAs existed. The numerous benefits of MRAs were stressed but it was explained that they were not the only option for addressing recognition issues and might not even be the appropriate option in a number of cases. The cost/effectiveness of MRAs was recognized as an issue which should be carefully addressed. Some concerns were also expressed concerning the discriminatory trade effect of some governmental MRAs.

The final session dealt with the role of international and regional systems for conformity assessment. It was found that international guides are commonly used by these systems, which play a useful role in coordinating conformity assessment bodies and through which technical assistance and know-how may be transferred to developing countries. It was however noted that it was necessary to eliminate duplication of work among different systems at all levels. These discussions on conformity assessment were prolonged at the level of the TBT Committee during a recent session. There were several proposals from WTO Members concerning the use of guides or codes of good practice that should be looked into concerning e.g. accreditation bodies or the negotiation of MRAs.

All this was related to legal metrology work and this is why Mrs. Liu again suggested that CIML Members should coordinate with national trade authorities in order to introduce their viewpoints concerning conformity assessment procedures.

Mrs. Liu then evoked the third element of the triennial review, dealing with technical assistance. The TBT Committee noted that certain WTO developing country Members encountered difficulties in the implementation and operation of the TBT Agreement and in the preparation of technical regulations, the establishment of national standardization bodies, regulatory bodies and bodies for conformity assessment. The methods by which technical regulations of other Members could best be met, the participation in international standardizing bodies, and the access to systems for conformity assessment were discussed. Technical assistance should be provided to requesting Members, particularly least developed Members, who were advised to inform the TBT Committee of any difficulties there were facing and assistance they might need. Other Members were invited to contribute to the technical assistance process by showing their experience in the implementation of the TBT Agreement.

Concerning the Seattle Ministerial Conference in November 1999, Mrs. Liu said that a number of Members had made proposals on TBT matters.

To conclude, Mrs. Liu noted the importance of obtaining as wide a participation as possible of all interested bodies in the discussions of the TBT Committee, including experts in metrology, the importance of which was now increasingly recognized in relation to trade, although much progress had still to be made.

Mr. Faber expressed his deep appreciation and sincere thanks to Mrs. Liu for all the information she gave and recommendations she made in her presentation.

Mr. Szilvássy then gave information concerning BIML participation in WTO activities, including attending five TBT Committee meetings, the Information Session and the Symposium on conformity assessment, during which the BIML explained how International Recommendations were developed, approved and implemented, and how the OIML Certificate System for Measuring Instruments was operating. The BIML also regularly received information concerning the TBT Committee activities. He pointed out that Mrs. Liu had already made a very interesting presentation of the WTO/TBT Committee during the International Seminar held in June 1998 in Braunschweig. To conclude, Mr. Szilvássy enumerated the OIML papers in which the WTO was mentioned, and the WTO papers available from the BIML documentation center on request.

Mrs. Annabi expressed her deep satisfaction for the highly interesting content of Mrs. Liu's report and for the interest she had shown concerning OIML activities, and especially those of the OIML Development Council. She also confirmed her willingness to establish a cooperation between the Development Council and the Secretariat of the TBT Committee in fields connected with technical assistance, and requested the CIML to support this proposal which could come into effect in the course of 2000.

Mrs. Liu said that several points had to be considered. First, developing countries should say what they wanted and needed, then donor countries should be identified. For the WTO Secretariat, there

was no possibility to improve the metrology capacity of countries; however, the WTO Secretariat could help to coordinate and organize work, and disseminate information. In the WTO, there was a Technical Cooperation Division which could organize seminars related to the TBT Agreement.

Mr. Faber said that the CIML would certainly support cooperation between the WTO and the OIML Development Council and requested Mrs. Annabi to report on the progress of this cooperation at the next CIML Meeting.

Mr. Pákey noted that Mrs. Liu had developed considerations concerning MRAs including the problems which might result for developing countries in certain cases. He asked whether Mrs. Liu was aware of the agreement soon to be signed within the Meter Convention and, if so, what would be her opinion in relation to developing countries. Mrs. Liu replied that she was not aware of this agreement. She pointed out that the difficulties she had mentioned were mainly related to bilateral MRAs, which seemed not to be the case for the agreement to be signed within the Meter Convention, which was probably a multilateral MRA remaining open to additional signatories after the initial conclusion.

Mr. Schulz noted that there were two sets of standards related to quality management, one being the ISO 9000 series and the second being ISO 17025 and other similar Guides. One set was operated by accreditation bodies, the second by certification bodies. There was an increasing overlap regarding quality management requirements. Industry, especially medium-sized industry, was unhappy about this situation. Mr. Schulz asked Mrs. Liu what the views of the TBT Committee were concerning this and what the TBT Committee's action could be to avoid this kind of overlapping and competition between certification and accreditation bodies in the future.

Mrs. Liu replied that the WTO was not (and would not be) involved in writing international standards. Problems arising from the coexistence of the ISO 9000 series and ISO 17025 were to be solved by ISO, which had to take care of the interests of all the bodies concerned. She was well aware of the problem mentioned and hoped that ISO would be able to solve it. However, the WTO/TBT Committee clearly wished that international standardizing bodies would not compete with each other and that the development of International Standards and Guides would take care of market needs, trade interest, and also the interests of the various bodies involved. To this end, the TBT Committee was thinking about establishing guidelines for international standardizing bodies.

Mr. Boudissa, noting that agreements between developed countries such as the USA and the European Union had been discussed over several years before being signed, expressed the fear that for developing countries, the situation would be even worse owing to the difficulties these countries are facing to comply with the rules specified by the WTO. Technical assistance was necessary to allow developing countries to save time and money and to be able to trade both between themselves and with more developed countries. He therefore asked Mrs. Liu what the WTO had done and was going to do in this field and what donor agencies or countries could bring in terms of financial assistance concerning conformity studies for developing countries.

Mrs. Liu replied that technical assistance was always an important part of the WTO's work. The technical Cooperation Division was responsible for this assistance in general and, in addition, each division was organizing technical cooperation work. Under the Agreement itself, there was an obligation for Members to provide technical assistance on a mutually agreed kind of condition. It was noted that many developing countries had problems complying with the technical requirements and fulfilling the conformity assessment procedures applicable in developed countries. At the same time, in the Agreement there are provisions giving the possibility for all Members to prepare regulations and standards to protect consumers, the environment, animals and plants in their countries, provided that when preparing technical regulations they do not discriminate and create unnecessary obstacles to trade, that they apply transparency procedures providing opportunity for comments, and that they use

international standards as far as possible. Developed countries should therefore not discriminate against developing countries and create unnecessary obstacles to trade for the latter when preparing such regulations and standards. It was obvious that developing countries require technical assistance and the WTO and other international organizations such as the OIML were doing their best to try to help them to be better equipped to compete in the global market. For example, the WTO organizes three annual seminars for developing countries in fields such as the use of international standards, the importance of product quality, standards information and improving conformity assessment activities.

Mr. Birch expressed his concern for the fact that the debate on technical barriers to trade was dominated by voluntary standards. Trade facilitation through legal metrology was less a matter of standards than of having a "system" in place, including an internationally harmonized system of units of measurement, measurement standards, sets of procedures, etc. which all together provide integrity of the "system". This matter of integrity was a basic one, as demonstrated during a recent Seminar on Software: there is a risk that the integrity of measurements can be harmed by manipulation of software. He pointed out that the economic benefits of such a "system" were difficult to identify because of its "externality", and said that in his opinion the broader aspect of the underlined system which supports the whole standardization was not always taken account of. Mr. Birch also expressed his agreement for what had been said concerning participation in international work, which might be hindered for geographical or development reasons. He suggested that the WTO should consider supporting regional structures and the development of regional standards since in recent years, regional cooperation in standardization, metrology and legal metrology has significantly expanded.

Mrs. Liu agreed that there was perhaps a lack of understanding and knowledge about the role of metrology and said that the WTO needed the participation of experts in metrology to facilitate the understanding of these problems by trade authorities. Concerning matters connected with participation, she welcomed any views which might assist the WTO in improving participation of developing countries in international standardizing activities. Concerning regional cooperation, she expressed both her general satisfaction for the situation and her concern for the fact that in certain fields, certain regions were late in establishing their regional cooperation bodies and needed encouragement in their efforts to increase governments' awareness. It should also be pointed out that regional bodies were not here to build their own fortresses, but to help countries enter into the multilateral systems.

Mr. Nyström noted that different trends existed concerning conformity assessment: horizontal systems based e.g. on accreditation by ILAC or IAF, but also sectorial developments in fields such as food or fishing, and asked whether the WTO had any preference between these trends which might sometimes result in conflicts.

Mrs. Liu said that the WTO was not there to dictate other bodies' work and was not a conformity assessment system developer. This was the responsibility of other bodies such as those mentioned by Mr. Nyström, which had to solve the problems of conflict and duplication of work, and WTO Members had to make sure that the systems which were being built followed the basic principles specified by the WTO.

Mr. Laamoumri noted that certification bodies and evaluation procedures had been established in Morocco in conformity with international standards. However, the certificates issued by these national bodies were, in many cases, not recognized by other countries and parallel certification procedures were even introduced by industrialized countries. What could the WTO do in order to assist developing countries in having their certification systems recognized?

Mrs. Liu replied that the concerns expressed were specifically those of the WTO, which was working to avoid problems connected with multiple certification testing. The Agreement itself was providing discipline but further discussions were still needed.

Mr. Faber noted that Mrs. Liu had highlighted the need for cooperation at national level between persons responsible for trade and for legal metrology. However, in many OIML Member States, it could perhaps be difficult for the persons responsible for legal metrology to identify the bodies and key persons active within the WTO. Would it be possible to receive appropriate information from the WTO?

Mrs. Liu replied that through the symposiums and meetings organized by the TBT Committee, awareness concerning the role of metrology and that of the OIML was gradually increasing. It was now the responsibility of national legal metrology authorities to identify their national trade authorities since the situation was different from country to country.

Mr. Berhanu Werede noted that it had been said that on the one hand the WTO did not dictate any organization to implement its Agreement and, on the other hand, that member countries should implement the resolutions in the Agreement. Is there any mechanism of importing these resolutions or is this just a kind of moral obligation?

Mrs. Liu said that WTO Members (*Note: The OIML and the WTO do not have identical membership*) had the obligation to notify the TBT Committee about the implementation and administration of the Agreement by their governments. This information is reported in WTO/TBT documents available for everybody (e.g. on the Internet). However up to now, approximately half of the WTO Members had made such notification, this being due to the fact that the Agreement was not easy to implement and that developing countries were facing difficulties in its implementation. In fact governments, in order to completely implement the Agreement, should contact all national bodies involved in the preparation of technical regulations and standards, conformity assessment procedures, including metrology bodies, which should not engage in activities that create unnecessary obstacles to trade. All these bodies should be informed of the rules of the TBT Agreement in order to be able to follow these rules.

Mr. Chappell noted that both the importance of international standardization activities in the TBT Agreement and also the *Code of Good Practice for the Preparation, Adoption and Application of Standards* had been stressed, and asked how many international standardization bodies were listed as observers of the TBT Committee and how was it checked whether they were following this *Code of Good Practice*.

Mrs. Liu replied that the ten organizations that had been invited to the information session were all observers of the TBT Committee. Concerning the *Code of Good Practice*, Mrs. Liu said that it was open for acceptance for national standardizing bodies, regional standardizing bodies whether or not they were governmental, but not for international standardizing bodies. This was one of the reasons why there were so many discussions on international standards, since the Agreement provided discipline for national and regional bodies but not for international bodies; at the same time the Agreement was encouraging Members to use international standards. This was why the TBT Committee was looking at how much these international standardizing bodies were following the principles of the *Code of Good Practice* (i.e. openness, transparency and impartiality, plus avoiding unnecessary obstacles to trade).

Mr. Magana said that the WTO representative had shown that the importance of metrology was well understood. He also noted that in developing countries, the needs in the field of metrology were different from those in standardization, for which access to international standards or participation in their development was most often sufficient. In metrology, there was a need to have appropriate infrastructures and, unfortunately, international funding bodies usually had a very bad knowledge of metrology which was mixed with standardization. Would it be possible for the WTO to help the OIML in increasing the awareness of the international funding bodies concerning metrology and its importance in the development of countries?

Mrs. Liu replied that although this was already being done since the participation in TBT Committee activities (such as the Information Session and Symposium) included technical bodies and

bodies providing technical assistance, which were thus aware of matters connected with metrology, quality, etc., future coordination and cooperation among these bodies are necessary.

On behalf of all CIML Members, Mr. Faber reiterated his thanks and appreciation for Mrs. Liu's very interesting participation in this CIML session.

9.2 Standardization organizations (in particular: ISO, IEC, UN/ECE)

Concerning ISO, Mr. Athané said that cooperation was globally good; however, certain specific aspects had to be carefully examined in order to avoid any risk of conflict. The relations between the ISO General Secretariat and the BIML were excellent. The development of a joint ISO/OIML publication on *Vehicle exhaust emission measuring instruments* based on OIML R 99 was progressing satisfactorily. In the same way, an agreement had been reached concerning the development by the OIML of papers of implementation of ISO 17025 and ISO/IEC Guide 65 to legal metrology. There was however a risk of conflict since ISO/TC 28 had expressed its concern over the lack of participation and information from the OIML TC's concerned. Mr. Athané said that he would try to clarify the situation as soon as possible.

Concerning IEC, Mr. Athané said that there were no significant problems and that a possibility to develop joint IEC/OIML papers on sound level meters was being considered. This would avoid the disadvantages of the current situation where the OIML was lagging behind the IEC, with its Recommendations 58 and 88 being revised one or two years after the publication of the corresponding revised IEC Standards.

Mr. Magana mentioned the revision of the IEC Standard on electricity meters and suggested that the OIML should use this work in the revision of its Recommendation R 46.

Mr. Chappell said that cooperation between IEC/TC 29 and OIML/TC 13 had been very productive but asked whether this would change following what Mr. Athané had said. Mr. Athané said that in fact the OIML would have to adapt to IEC working methods with a view to producing joint documents. For example, a limited number of OIML experts would be appointed to represent the OIML interests in IEC work. Mr. Chappell added that efforts should continue in order to develop the cooperation, especially in the field of test procedures and test reports, in order to eliminate any risks of misinterpretation of the agreed requirements.

Mr. Engler reported concerning the liaison between OIML/TC 5 and the IEC/ACEC (Advisory Committee on Electromagnetic Interference), which was operating quite satisfactorily. On the occasion of an ACEC meeting, Mr. Engler had made a presentation of the OIML in general and of TC 5 activities in particular and the ACEC had offered its support in the revision of OIML D 11. However, many ACEC members would like to have requirements on electromagnetic radiation introduced in D 11 (in addition to the present susceptibility requirements) but Mr. Engler did not consider that this was acceptable.

Concerning UN/ECE, Mr. Szilvássy reminded the participants that the BIML was systematically invited to all sessions of the Working Party on technical harmonization and standardization policies and that reports were regularly published in the OIML Bulletin. During the last session, a workshop had been organized on the implementation and use of international standards and it had been noted that the OIML was practically the only one conducting surveys concerning the implementation of its Recommendations. Over the last five years, participation in the working party sessions was shifting from western to central and eastern Europe: the interest in participating and the need to receive assistance was greater for newly independent countries and for countries in transition towards a market economy. A draft guide on standardization of measurement procedures had been elaborated and the BIML would contact the OIML TC's/SC's concerned in order to obtain an OIML contribution to this work.

9.3 Accreditation organizations (in particular: ILAC and IAF)

Concerning ILAC, Mr. Athané reminded the participants that Mr. Chappell and himself had represented the OIML at the last ILAC General Assembly in October 1998 in Sydney and that nothing of note had occurred since then. However, Mr. Szilvássy would attend the next ILAC General Assembly on 18–20 October 1999 in Rio.

Concerning IAF, Mr. Athané said that an initial (but very brief) contact had been possible on the occasion of the recent IAF General Assembly, at a part of which he had represented the OIML. A further meeting between representatives of IAF and of the OIML would have to be organized at an appropriate time and place.

9.4 Regional Legal Metrology Organizations (RLMO's)

The Committee took note of information given by the representatives of various RLMO's present at the meeting. Since information had already been given during the Development Council meeting, these representatives limited their presentations to matters of specific interest for the CIML.

Mr. Birch mentioned the APLMF activities in support of mutual recognition, including training courses, intercomparisons on nonautomatic weighing instruments and load cells, now in completion, and proposed intercomparisons on master meters and mass standards. Reports about these intercomparisons will be prepared for publication in the OIML Bulletin. There was also a strong interest in the region for prepackaged goods and the need to review OIML R 87. At the recent APLMF Forum meeting, interest had also been shown concerning the measurement of bulk commodities using draught survey methods. Mr. Birch then gave information on training activities currently being developed or in preparation.

Mr. Polverini said that COLAMEL was a very young regional body initially established in the framework of MERCOSUR, but with a possibility to extend it to other Latin American countries. His role was now to try to collect information and support, especially from the OIML.

Mr. Astashenkov said that information on COOMET had been published in the July 1999 OIML Bulletin and that no new information was available at this time.

Mr. Beard said that his previous report on SADCMEI had covered the most important aspects of this regional Southern-African cooperation. Therefore, he limited himself to reiterating the involvement of the countries in the region in the international community. SADCMEI is aimed at facilitating the trade of goods within the region, of course using requirements which should be compatible with those of the rest of the world. SADCMEI was also looking for close cooperation with other RLMO's and therefore welcomed the WELMEC initiative to organize contacts between these RLMO's. OIML Recommendations were intended to be adopted by SADCMEI whenever available and there were also plans to increase participation of countries in the region in OIML technical activities in order to ensure that the needs of the Southern-African region were duly addressed in the drafting of these Recommendations.

Mr. Bennett gave information concerning the WELMEC web site, which included pages available for general access, pages restricted to WELMEC Members, and a feedback facility to ask questions or make comments about WELMEC, its publications and its work. Concerning the recent developments, Mr. Bennett pointed out that the MoU had been recently updated, that a publication on software requirements had recently been adopted, that the importance of work on prepackaged goods had been emphasized and should be accelerated, that collaboration with other regional groups had been initiated, and finally that cooperation with the OIML was considered as very important. In fact, many activities within WELMEC were also of interest for the OIML, e.g. supplementing ISO Guides/EN 45xxx Standards for application to bodies responsible for type approval, verification and surveil-

lance of quality systems in legal metrology, or developing a guide on software requirements. WELMEC was also developing guides on the implementation of certain OIML Recommendations and the fact that such guidance documents were necessary was perhaps a proof of the fact that the corresponding OIML Recommendations had to be adequately revised and supplemented. Concerning cooperation with other regional bodies, Mr. Bennett pointed out that this was happening outside the OIML since these regional bodies might include countries that were not members of the OIML, but that the OIML was nevertheless providing an excellent framework for this cooperation between regional bodies.

Mr. Magana informed the participants that on Monday October 4, a first round-table on legal metrology cooperation in the Euro-Mediterranean region had been held in Tunis, with some thirty persons representing 14 countries in the region, two regional bodies - APLMF and WELMEC - and the BIML. Matters of common interest were discussed and four work projects were identified: (i) training (needs and available resources), (ii) information on recognition of type approvals, (iii) evaluation of needs in the field of technical assistance, and (iv) mutual information. The next meeting would be held next year in conjunction with the OIML Conference and CIML Meeting. Discussions also concluded that two requests should be submitted to the CIML: (i) to rapidly proceed with a revision of OIML D 1 *Law on Metrology* and (ii) to rapidly update the documents dealing with the equipment and means for legal metrology services.

9.5 Regional organizations having activities connected with legal metrology (in particular: European Commission and CEN/CENELEC)

Mr. Athané summarized the relationship between the European Commission and the OIML in relation to the development of a European Directive on Measuring Instruments (at present at the stage of a draft). Through his participation in a number of meetings in Brussels and with the active support of Representatives of Legal Metrology Services of the European countries concerned and of WELMEC, it has been possible to make sure that there were no significant divergences between the requirements in the MID and those in the relevant OIML Recommendations. This was necessary in order to make sure that instruments meeting OIML requirements would not be rejected systematically for metrological reasons when submitted to European type approval (this applying of course only to recently published OIML Recommendations). Following these discussions concerning the compatibility between the MID and OIML Recommendations, the European Commission had accepted to introduce in the MID two ways to obtain a presumption of conformity with the requirements in the MID: (i) European Standards to be developed by the European standardization bodies, CEN and CENELEC, upon mandates given by the Commission and (ii) Normative Documents developed by the OIML. For each instrument covered by the MID, the Normative Document would include the text of the relevant OIML Recommendation plus the requirements of the MID with, in parallel, the number(s) of the clauses of the Recommendation which satisfy the MID requirements. Manufacturers would then have several possibilities to satisfy the MID metrological requirements: (i) to prove direct compliance with these requirements, or (ii) to prove compliance with the provisions of the relevant European Standard, or (iii) to prove compliance with the provisions of the relevant OIML Recommendation as reproduced in the relevant Normative Document.

Mr. Athané added that at the time of the CIML Meeting, certain aspects related to the development of OIML Normative Documents were not yet fully clarified but that things were progressing: within some months, it would certainly be possible for appropriate working groups, made up e.g. of European P-members of relevant OIML TC's/SC's and of experts of WELMEC, with BIML participation as far as necessary, to develop OIML Normative Documents for many instrument categories covered by the MID. For the others, it will be necessary to wait for the revision of outdated OIML Recommendations or the development of new ones.

Mr. Bennett, speaking on behalf of both the United Kingdom and WELMEC, added that he had no accurate information concerning the date at which the MID would be approved and published. He

also confirmed that most countries in the European Union had actually expressed to the Commission their willingness to have MID metrological requirements which would not be in contradiction with the corresponding OIML provisions. To this end, a WELMEC working group chaired by Mr. Magana was working hard to make sure that the annexes to the MID in which these requirements were given would be compatible with the relevant OIML Recommendations. He also clearly indicated that manufacturers would not be obliged to follow OIML Recommendations or European Standards: they would have the possibility to meet the MID requirements directly; therefore, it was a one-way compatibility: instruments complying with the OIML would comply with the MID but an instrument complying with the MID would not necessarily comply with the OIML.

Mr. Chappell asked whether the agreement with the Commission was a formal one, with some paper signed which would commit the OIML as a whole, or an ad-hoc one, involving certain OIML Member States and to a certain degree the BIML, without any definitive commitment for the OIML. He also asked whether a similar or different, formal or ad-hoc, agreement would have to be concluded with CEN and CENELEC.

Mr. Magana replied that this recognition by the European Commission of the status of OIML Recommendations resulted in part from the fact that the OIML was recognized by the WTO as being an international standardizing body. Therefore, what will be recognized by the Commission as Normative Documents will be documents officially developed and formally approved by the OIML, not documents developed by a European working group on the basis of OIML Recommendations.

Mr. Faber confirmed that for the time being, there was no official agreement between the OIML and the European Union concerning this cooperation.

Mr. Bennett added that it was appropriate to differentiate the two ways for obtaining presumption of conformity to the MID. In the case of a European Standard, there would be a contract between the Commission and CEN and/or CENELEC whereby the Commission would issue a mandate to produce a Standard which, when produced, would automatically be considered as giving presumption of conformity with the MID. In the case of OIML Normative Documents, the MID made provisions for a Measuring Instrument Committee, comprising representatives of Legal Metrology Services of countries of the European Union, to look at OIML Normative Documents and establish whether they met the MID requirements. There would be no formal contract in this case, but a confirmation by representatives of EU countries would be necessary.

Concerning cooperation with CEN and CENELEC, Mr. Athané said that good contacts had existed a number of years ago when, CEN and CENELEC having received a mandate from the Commission to produce a European Standard on nonautomatic weighing instruments, the preliminary work had been performed by the BIML at no charge for CEN/CENELEC which had received a text in English and in French, based on OIML R 76-1, with a view to its direct approval as a European Standard (EN 45501). Recently, the OIML expressed the wish to use a part of a European Standard as a basis for the revision of OIML R 75 on heat meters. CEN accepted provided that a copyright be paid by the OIML. Initially, the BIML had not accepted to pay it, arguing that the European Standard had been developed by European experts who are also working for the OIML and that no copyright had been requested by the OIML to reproduce R 76. Finally, the BIML had accepted to pay in order to allow the revision of R 75 to start immediately and, at the same time, the BIML Director had suggested meeting with the Secretaries General of CEN and CENELEC with a view to reexamining the cooperation between their Organizations and the OIML, especially in the framework of the development of European Standards/OIML Normative Documents related to the MID. The matters to discuss would include whether or not the Commission would give a mandate to CEN/CENELEC to develop a European Standard in a field where an OIML Normative Document would exist, whether a European Standard and a Normative Document covering the same instrument should be identical, whether the OIML would request a copyright from CEN/CENELEC to use already existing Recommendations, etc. Mr. Athané was also intending to suggest that CEN/CENELEC develop European Standards covering not

only the metrological aspects of measuring instruments, but also other aspects covered by other European Directives (safety of use, production of electromagnetic interferences, etc.), the metrological part of such standards being taken from the relevant OIML Recommendations.

Mr. Chappell said that he was hoping that some harmonization would be introduced between the OIML and CEN/CENELEC work and, in particular, that CEN/CENELEC work would not be developed without the consideration of other OIML Member States in order to avoid any establishment of technical barriers to trade.

9.6 Others (BIPM, WHO, ...)

Concerning the World Health Organization, Mr. Athané reminded the participants that there had been a cooperation between the WHO and the OIML some 15 or 20 years ago, but that this cooperation had step by step disappeared. However, the WHO was one of the Organizations with which a "targeted approach" (if possible a joint BIPM/OIML approach) had been suggested in the Birkeland Report in order to make sure that good metrological practices would be implemented in medical activities both at international and at national levels. It was therefore the intent of the BIPM to reestablish contact with the WHO.

Concerning the BIPM, Mr. Faber said that this year there had been no official meeting with the BIPM, because the BIPM considered that no progress nor change had occurred and therefore that there was no special reason to meet. However, Mr. Faber would represent the OIML at the next General Conference of Weights and Measures and would certainly meet the CIPM President and the BIPM Director.

Mr. Birch suggested that contacts with Codex Alimentarius should be made in relation with the revision of OIML R 87. He also pointed out that it should be necessary to try to attract the interest of international and regional consumer associations and have them participate in certain OIML work.

10 Activities linked with mutual recognition of test results, accreditation, etc.

Mr. Chappell reminded the participants of the report he had given one year ago in Seoul concerning activities connected with a mutual acceptance agreement on OIML pattern evaluations. The efforts started in April 1998 through a small ad-hoc working group and, when the work was considered mature enough, it was transferred to TC 3 which met in June 1999 in Paris. As a result of discussions within TC 3, it was considered advisable to create a new subcommittee TC 3/SC 5 (see item 11.1) which would be responsible for a number of activities connected with mutual recognition of OIML pattern evaluation, including the work up to now under the responsibility of TAG_{cert} and that on measurement uncertainty in legal metrology.

Mr. Chappell pointed out that this OIML activity was obviously connected with that being developed within the Meter Convention, since the equivalence of national measurement standards and the recognition of calibration certificates issued by national measurement laboratories were the basis for a further recognition agreement on the equivalence of measurement results in legal metrology.

Using transparencies, Mr. Chappell described in detail the content of the current draft agreement on mutual acceptance of OIML pattern evaluations, which is intended to be a voluntary system applying to instruments covered by the OIML Certificate System. The agreement will include OIML tests but possibly also some additional or different tests which could be required by some Member States for national pattern approval. The issuing of certificates will be restricted to Member States that

have declared themselves as issuing OIML certificates but the recognition will be open to any volunteering Member State. The paper will aim at creating the conditions of recognition of such certificates, thus permitting the operation of a mutual acceptance agreement through which any participant will accept and utilize the results of pattern evaluation test reports certified by any other participant and assume any legal responsibility associated with the use of the results, and in which the mutual confidence among participants is established through means of conformity assessment of each participant.

There will be an individual agreement for each category of instruments covered, with the possibility for each Member State to participate only in agreements of its choice. Mutual confidence will be established as follows: (i) each Member State wishing to participate will have to complete a questionnaire on national capabilities for carrying out such pattern evaluations; (ii) after that there will be an accreditation or peer review of testing laboratories carrying out such tests and an evaluation of the certifying body; (iii) supplementary elements will be further information on capabilities, training of testing laboratory personnel, exchange of test data and intercomparisons. Only two OIML Member States will be sufficient to initiate an agreement by informing the BIML so that other potential participants may apply through the BIML, which will be responsible for distributing appropriate information. There will be an appeal process and agreements will be in effect for four-year periods, with the possibility to review them periodically by mutual agreement of all participants. Basic documents to be used in the process will be ISO/IEC 17025 and ISO/IEC Guide 65 (with the OIML documents for application to legal metrology, the development of which is starting within TC 3/SC 5) and a paper on peer evaluation based on an EA document.

In reply to questions from Mr. Kildal, Mr. Chappell said that the draft agreement on mutual acceptance of OIML pattern evaluations should be ready by the end of 1999. Concerning the operational costs of conformity assessment of laboratories carrying out pattern evaluations (through accreditation or peer evaluation), he said that he had no estimate at this time; however, it should be understood that the cost will be borne by the participating laboratories. He also added that the BIML would be responsible for assembling the teams for peer evaluation and of course costs will vary according to the geographical origin of peers.

Mr. Beard asked whether accreditation bodies would be designated by the OIML or ILAC-related. Mr. Chappell replied that the participating organization would identify the accreditation bodies having an international or regional recognition (which would mean in most cases ILAC-related, without this being a strict requirement). A matter to carefully examine would be whether these accreditation bodies have the appropriate legal metrology experts. Mr. Chappell added that in certain Member States the national legal metrology services would find it unacceptable to be accredited by the accreditation bodies of their countries and would then prefer the peer evaluation procedure.

Mr. Beard also asked whether the rules for laboratories and certification bodies would be covered by an independent and complete OIML paper or related to ISO 17025 and ISO/IEC Guide 65. Mr. Chappell confirmed that this would take the form of documents of application of 17025 and 65 to legal metrology activities.

Mr. Laamoumri asked whether it was possible to implement existing recognition agreements in the field of legal metrology. He also asked whether the OIML had participated in the revision of Guide 25 to produce ISO 17025. Mr. Chappell replied that the OIML had not participated in the establishment of any mutual recognition agreement and what the OIML was establishing would be an independent agreement, the principles of which would be based on those implemented within more general existing agreements. Concerning the revision of Guide 25, Mr. Athané said that the OIML had participated with a view to ensuring that this document would not contain elements which would be inapplicable in the field of legal metrology.

Mr. Kildal asked several questions. He first pointed out the importance of the document for application of ISO 17025 to legal metrology and asked questions about its development. Mr. Chappell replied that a working paper had been prepared by Mr. Lagauterie and a draft would be distributed for examination within TC 3/SC 5 at a later stage. Concerning uncertainty in legal metrology, Mr. Chappell replied that he would give oral information later. Concerning the CASCO draft on peer evaluation, Mr. Chappell replied that he was not aware of this work but that the OIML working paper which would be distributed soon about this was based on an EA document.

Mr. Chappell then gave information concerning the revision of R 87 on the net content of packaging under TC 6 responsibility. Within TC 3, the subcommittee SC 4 on statistical methods had recently been reactivated under a German secretariat and had indicated its interest in being involved in the revision of R 87. The European regulatory activity in the field of prepackages was of course of significant interest for the OIML and a small working group meeting was recently organized in Berlin with representatives of the German bodies concerned, WELMEC, APLMF and the OIML TC 6 secretariat. Significant progress was made and an outline for the revision of R 87 was prepared, including contents in terms of length and count in addition to mass and volume, testing requirements at the point of packaging and at the point of sale, specific sampling plans, provisions for an international conformity mark (IQ), plus informative annexes covering for example inscriptions and marks, moisture loss, standard sizes, use of standardized container bottles, misleading practices, etc. Provisions for packers to qualify for the IQ mark would include having an accredited testing laboratory and a documented quality system, the BIML being responsible for certifying participants and maintaining their register. Mr. Chappell concluded his presentation by saying that a draft was expected to be circulated within TC 6 at the beginning of 2000.

Mr. Birch confirmed the interest of the Berlin meeting during which the need to establish a system of integrity in the marking of prepacked goods was discussed with an international recognition which would allow multiple testing at borders to be avoided. The international trade of prepacked goods could be evaluated at one hundred times that of trade measuring instruments, which proves the economic impact of the planned mark. In parallel with international work on prepacked goods it should be noted that regional and national activity was intense (e.g. WELMEC, the European Commission with its SLIM program, or the National Conference on Weights and Measures in the US). It should be necessary to make sure that regional and national developments followed international ones. Requirements for certifying packers was also a very important issue in the revision of R 87, as well as other topics mentioned by Mr. Chappell such as the standardization of sizes or the testing of desiccating products.

Mr. Birch also said that, as he had already mentioned, the control of prepacked goods was in many countries outside the responsibility of the CIML Member. There was therefore a need to associate national bodies responsible for prepackaging in OIML work in order to ensure its international acceptance.

Mr. Chappell requested the Bureau to inform the European Commission about OIML work when the draft revision of R 87 is ready. Mr. Athané expressed his full agreement to this request. Concerning the proposal resulting from the Berlin discussions to have the Bureau acting as a certifying body, he said that this should be very carefully examined; perhaps, alternative solutions should be envisaged. Mr. Chappell agreed with this remark and said that it would perhaps be preferable to have certification of packers made by certifying bodies outside the OIML, the Bureau acting as a coordination and information center for this activity.

Mr. Bennett expressed the view that all these matters should now be discussed in depth within TC 6. He raised two questions: whether the certified packers should only be within OIML Member States and the differences between the proposed OIML IQ-mark and the existing European E-mark.

Mr. Chappell confirmed that the Berlin meeting was mainly intended to gather useful information with a view to the revision of R 87; it was in no way an officially TC 6-related meeting. The matter of compatibility between an IQ-mark and the E-mark was of course evoked. The IQ-mark would be a voluntary one, not prohibiting the use of other marks, and not inconsistent with the E-mark. Besides this, the ways packers would apply for being certified would have to be carefully defined.

Mr. Chappell then gave information about the third topic of his report: expression of uncertainty in legal metrology activities. Two weeks previously he had held a small working group meeting on this topic to decide how TC 3/SC 5 could develop the preliminary study carried out some three or four years ago by Mr. Lagauterie in cooperation with the Bureau. An outline of the future document was developed during this working group meeting in which Messrs. Lagauterie from France and Sommer from Germany had participated. The document would be entitled "Decision criteria for conformance of measuring instruments in legal metrology" and would contain chapters dealing with the relationship between error limits and uncertainty, between other metrological characteristics and uncertainty, and uncertainty corresponding to specific error limits. It would also contain an annex on step-by-step calculation of uncertainty.

Mr. Faber expressed his thanks and congratulations to Mr. Chappell for all these activities under his responsibility. He pointed out however that all this work was now at a very preliminary stage and should develop from now on in line with the working methods for OIML technical work, which meant that all Member States concerned will have the possibility to participate in it.

11 Technical activities

Mr. Chappell reminded the participants that a written report on OIML technical activities had been distributed to everybody and limited his oral presentation to the matters listed below under the various sub-items of this part of the agenda, and to the fact that the TC/SC secretariats had last year been requested to inform the Bureau about existing publications which should be reconfirmed, reviewed or withdrawn; responses received were not complete and the same matter would be once more drawn to the attention of these secretariats. Concerning certain items listed below, Mr. Chappell reminded participants that discussions should conclude in formal decisions to be made by the Committee.

Mr. Szilvássy pointed out that the overall technical activity and the plans for next year showed an increase in the volume of work produced. He also gave some additional information concerning the written report prepared by the Bureau and distributed to all participants.

11.1 Work program of OIML TC's/SC's

11.1.1 Establishment of new SC's and their work programs

Concerning the splitting up of TC 15 (*Measuring instruments for ionizing radiations*) into two subcommittees, the Committee accepted the establishment of:

- TC 15/SC 1 *Measuring instruments for ionizing radiation used in medical applications* under the responsibility of Russia, and of
- TC 15/SC 2 *Measuring instruments for ionizing radiation used in industrial processes* under the responsibility of the USA,

the lists of P-and O-members and liaison institutions for both SC's having to be established by correspondence.

Concerning the establishment of TC 3/SC 5 associated with a disbanding of the working group on accreditation and of the TAG_{cert}, the Committee accepted the proposals submitted by Mr. Chappell.

11.1.2 New work projects proposed by TC's and SC's

The Committee accepted the proposals from:

- TC 8 to combine the revision of OIML R's 4, 29, 45 and 96, followed by a combined revision of OIML R's 40, 41 and 43;
- TC 9/SC 2 to start the revision of the five Recommendations on automatic weighing instruments starting with R's 51 and 61;
- TC 11/SC 3 to include a new work project on *Standard black-body radiator for the temperature range from – 50 °C to 3 000 °C*;
- TC 17/SC 6 to include two new work projects on *Calibration procedure of mine methanometers* and on *Procedure for calibration of alarms of combustible gases and vapors*;
- TC 18/SC 4 to include a new work project on *Analyzing electrocardiographs. Metrological requirements. Methods and means of verification*;
- the BIML to postpone the publication of Annexes to R 101 and R 109 as approved by the Committee in 1998 until the time when these Recommendations themselves are revised.

11.1.3 Developments within TC 3/SC 4

Mr. Chappell noted that this SC, under the responsibility of Germany, would soon distribute information and proposals concerning its work program.

11.2 Examination of the situation of certain TC's and SC's

11.2.1 Vacant TC's and SC's

Concerning TC 13, the Committee noted that no Member State was currently volunteering to undertake this responsibility. However, Mr. Bennett said that there were some discussions within the UK members of this TC and that information would be communicated to the BIML as soon as available. Mr. Chappell said that the USA would support a UK candidacy for this TC.

Concerning TC 8/SC 1, the Committee allocated responsibility to Austria.

Concerning TC 16/SC 1, it was also pointed out that the Netherlands were no longer able to undertake responsibility other than the completion of the test report format for OIML R 99 and that a volunteering country should be found to carry out the other work projects (*Continuous measuring instruments for NO_x, SO₂ and CO*) under this SC.

11.2.2 Allocation/transfer of responsibility

The Committee accepted that responsibility for revising OIML R 35 be transferred from TC 7/SC 1 to TC 7.

11.2.3 Proposals on future and urgent technical activities

Concerning the establishment of a new TC or SC on *Software*, the Committee accepted to establish a new subcommittee TC 5/SC 2, under the joint responsibility of France and Germany. The work on electronic measuring instruments would then be the responsibility of TC 5/SC 1 under the responsibility of the Netherlands. Concerning the role and responsibility of TC 5 itself, this matter would have to be considered later.

Concerning the revision of D 1 *Law on Metrology* and the work on measurement uncertainty in legal metrology, Mr. Chappell said that this was the responsibility of TC 3 and that he had already identified persons willing to prepare working documents.

Concerning prepackages, Mr. Chappell reminded the participants that he had already given information under item 10 of the agenda.

Mr. Lagauterie asked whether it would be advisable to work on environmental influences on flow meters which did not generate pulses. It was concluded that this should be dealt with within TC 8, without establishing any new subcommittee, but paying attention to the fact that several TC 8 subcommittees might be concerned by the problem.

11.3 Approval of draft Recommendations

Mr. Athané introduced the four draft Recommendations submitted for approval by the Committee.

PR 1

Concerning the draft revision of OIML R 60 *Metrological regulation for load cells*, it was pointed out that under item 12.2 the Committee would have to consider the question of the issuing of OIML certificates according to the “old” and to the “new” versions of this Recommendation and Mr. Chappell said that the US working group had already started working on this very important matter. It was also indicated that the Bureau had already started working on editing the text in order to be able to issue it as quickly as possible following its approval by the Committee.

The draft was approved with one negative vote from Australia.

PR 2

Concerning the draft *Multi-dimensional measuring instruments*, it was pointed out that a draft test report format had been developed by the Australian secretariat and would be distributed by the Bureau to all CIML Members for postal examination and vote following the approval by the Committee of the main text. It was also indicated that the issuing would take place when the complete Recommendation is available.

Mr. Magana said that France would abstain because these instruments were intended to be covered by the European Directive on measuring instruments and that the OIML Recommendation, as it was, would not be appropriate to serve as a basis for a Normative Document.

The draft was approved with four abstentions from Denmark, Finland, France and Monaco, and one negative vote from Canada.

PR 3

Concerning the draft revision of R 49 *Water meters intended for the metering of cold potable water*, participants were reminded that at the Tenth OIML Conference in 1996, a draft revision of R 49 had been presented after a rather favorable postal vote; however, the Conference, considering that there were still some risks of divergences between the OIML text and the corresponding ISO Standard

which was being revised, had requested OIML TC 8/SC 5 to cooperate closely with ISO in order to eliminate any divergence and to produce a new draft that the CIML would approve. It was also pointed out that since then, OIML TC 8/SC 5 had produced two draft revision of R 49: one covering only mechanical meters, and a second one also covering electronic meters. However, the P-members had not been able to decide which draft should be submitted for approval by the CIML and therefore, both drafts were submitted to the CIML directly, without an informative postal vote having been carried out previously. It was proposed to the CIML to proceed first with a formal vote of the draft covering electronic and mechanical meters, with the possibility to vote thereafter on the draft covering only mechanical meters in the case where the first draft had not been accepted.

Mr. Bennett, on behalf of OIML TC 8/SC 5, pointed out that there were still some differences between the OIML provisions for mechanical meters and the corresponding ISO provisions, but that these differences were not creating any conflict and that the two documents would be entirely compatible in their application. He also said that for the time being, ISO work was limited to mechanical meters but that it could be expected that in the future ISO experts would accept the views of the OIML concerning electronic meters. Therefore, there was no reason not to immediately approve the more complete of the two OIML drafts.

Mr. Chappell expressed his total disagreement concerning a parallel which had been drawn by Mr. Athané between this draft and the draft revision of OIML R 65 (see below). He objected to the procedure followed for submitting this draft to CIML approval since no "consensus process" had been carried out. He also pointed out that the US experts had been very active in the revision of R 49 which was a very important text; however, it would be an inappropriate precedent to have a draft Recommendation not go through the process specified in the OIML work directives, since the texts presented to the CIML were different from those which had been presented to the Tenth Conference. Therefore, the USA could support neither of the two drafts.

Mr. Bennett replied that the fact that the new drafts were different from the 1996 one resulted from the Conference's request to have the OIML text in line with the ISO one. In addition, the time schedule which had been observed was exactly that which had been accepted at the level of TC 8/SC 5; there was therefore no reason for the USA to reject now what had been accepted previously.

Mr. Chappell said that there had been sufficient time at the beginning of the year to decide which draft should be submitted for approval and to send it to CIML Members for postal examination and vote before submission to this meeting. The TC 8/SC 5 secretariat had initially followed this process but was unable to take a decision concerning which draft should be selected and then waited until it was too late to send it to the CIML for a decision to be made by correspondence. Therefore, Mr. Chappell considered that all of this constituted a violation of the work directives.

Mr. Birch said that there was a need, well expressed at the APLMF level, to produce a Recommendation on water meters as quickly as possible which would be compatible with ISO work. In fact, cooperation between the two Organizations was very good and the work of both OIML and ISO subcommittees was so intense that in fact it was possible to develop and agree on rather new OIML and ISO texts covering mechanical meters. Concerning electronic meters, the ISO subcommittee was not able to work as quickly as the OIML one, this being due to the fact that general provisions for electronic measuring instruments and more specific provisions for meters for liquids already existed in the OIML. It would be a pity if adoption of the more complete OIML draft was delayed just because ISO was lagging behind the OIML. Finally, Mr. Birch pointed out that there was a need to accelerate the production of OIML Recommendations in fields of great priority and that new working procedures would have to be defined to this end. Therefore, although the way the draft had been put forward was unusual, it was the best possible way.

Mr. Lagauterie said that France, which had been one of the countries that had objected to the submission of the previous draft revision of R 49 to the Tenth Conference, was now fully in favor of both new drafts.

The CIML accepted to first proceed with a formal vote on the draft covering electronic and mechanical water meters, which was approved with four abstentions from Brazil, Canada, Ethiopia and Sweden and four negative votes from Japan, Poland, Switzerland and the USA.

PR 4

Concerning the draft revision of R 65 *Force measuring systems for uniaxial material testing machines* (also intended to replace R 64), participants were reminded that it had already been presented to the CIML at the Seoul meeting following a favorable postal vote but that the Committee had decided to postpone its approval pending the resolution of potential conflicts with the corresponding ISO work. Mr. Chappell recalled the history of the development of the text and explained that he had had close contacts with the chairperson of the ISO working group concerned, that no technical divergences had been found and that the only risk of conflict was of a terminological nature; to eliminate it, an appropriate note had been developed jointly.

The draft was approved with five abstentions from Brazil, Canada, Norway, Romania and Spain.

11.4 Availability of OIML publications on paper, electronic media and via Internet; use of Internet within the OIML

Considering that the matter of the availability of OIML publications had already been discussed one year ago, Mr. Pulham preferred to first give information concerning the recent developments of the OIML web site.

In early 1999, the BIML had carried out a survey on the use of Internet in general and specifically of the OIML web site. The interim results were published in the April 1999 issue of the OIML Bulletin. At that time, 97 % of those who replied to the survey (i.e. roughly half of CIML Members) had access to Internet. It seemed that access to Internet was also progressing in developing countries - a positive sign concerning the possibility to rapidly transmit information through this media. However, the OIML had to be cautious and the continued transmission of information on paper should not be abandoned too quickly. The frequency of visits to the OIML web site was also increasing, as was the awareness concerning availability of certain OIML publications through Internet. The OIML web site had now existed for three years and was totally managed internally by the Bureau, without external assistance which meant that there had been no specific cost to be borne by the Organization. At the time of the CIML Meeting, the web site comprised approximately 25 pages on line including general information on legal metrology, role of the BIML, lists of Member States and Corresponding Members, latest news (announcements of meetings, new Members, etc.), and technical committees and state of progress of their work. There is also a data base of OIML certificates, a full listing of OIML Publications with the possibility to download many of them using the identification "members" and the password "riweb", and a page for the OIML Bulletin. The web site also includes links to sites of other international, regional and national bodies.

The site was becoming completely bilingual (English and French) with, however, certain pages common to both languages. It was also intended to have a Spanish version of the site with the help of the Centro Español de Metrología.

Mr. Pulham concluded the first part of his presentation by thanking all those who had contributed comments and feedback and by requesting OIML Members to participate in the continued development of the site. To this end, a feedback form was to be posted on the site to allow all interested persons to easily send their suggestions. He also mentioned that in 1998 there had been a total of 8 000 connections to the site and that the average connection rate was now 1 000 per month, emanating from all over the world.

Concerning the availability of OIML publications, Mr. Pulham said that their distribution through the OIML web site or by e-mail from the Bureau would represent significant savings of time and of money. For the time being, 43 publications were available through such means, including all the Recommendations applicable within the OIML Certificate System, using software permitting users to retrieve an exact reproduction of the paper printed version. The possibility to gradually phase out paper printing of publications and only make them available on disk or through e-mail or by downloading them from the web site should be seriously considered, although serving Members at two levels should be avoided. Therefore, abandoning paper printing would not be possible before each Member was able to use electronic communication means.

Mr. Magana suggested that OIML TC's or SC's could open web sites to accelerate and facilitate their work. This was already used within WELMEC and was found to be very efficient, provided that a certain uniformity in the layout be achieved and that advertising or other commercial matters be eliminated from such web sites.

Mr. Athané mentioned the increasing costs resulting from paper printing and the material problems associated with the storing of paper versions of more and more numerous publications. He recognized that it was not possible to abandon paper printing immediately. However, it was perhaps time to start reducing the number of printed copies of each OIML publication, provided that the Member States which had the necessary technical facilities would accept to limit the number of paper copies they request from the BIML and to print the additional copies they need themselves on the basis of an electronic version provided by the BIML on diskette or through e-mail, or by downloading them from the OIML web site. As an example, Mr. Athané said that ISO (which had more members than the OIML) usually prints only 350 paper copies of each Standard, whereas the BIML usually prints up to 750 copies of OIML Recommendations.

Mr. Beard asked what would happen for the sale of publications to manufacturers, private laboratories, etc. if the paper copies provided by the BIML were to disappear. Would it be possible for Members to download OIML publications and distribute them freely at national level?

Mr. Athané replied that for the time being Members should avoid distributing free copies of OIML publications to manufacturers, private laboratories, etc., since these should purchase them from the BIML. Free distribution should be limited to within legal metrology bodies. However, it was possible to transform OIML Recommendations into national regulations or standards, the distribution of which at national level was as for other regulations or standards. It was possible for CIML Members to establish national sale points for OIML publications, the product of sales being reimbursed to the BIML once a year with a 20 % deduction to cover the costs involved in the operation of such sale points. If in the future the situation concerning paper printing by the BIML was to change, sales procedures would also have to be reexamined.

Mr. Vaucher asked whether links to the homepages of Member States could be established. Secondly, concerning paper printing, he suggested that only the documents requested on paper by Member States should be printed. Mr. Pulham replied to the first comment by saying that such links were indeed established on the Members listing pages whenever the Internet address of CIML Members was known, and invited those who so wished to request a link to their Institution. Mr. Pulham also said that the Bureau would consider the second comment.

12 OIML Certificate System

12.1 General information

Mr. Kochsiek reminded the participants that a written report had been distributed to all participants concerning the various aspects of this item. In his opinion, the most important one was the activities of the newly established TC 3/SC 5 about mutual recognition and Mr. Kochsiek announced that he was ready to share the German experience about this with the participants but before that, he requested Mr. Szilvássy to give more information concerning the various topics under this item.

Mr. Szilvássy reminded the participants that the responsibilities hitherto under TAG_{cert} would now be transferred to TC 3/SC 5 under the joint responsibility of the USA and the Bureau. He also mentioned that two new categories of instruments were applicable within the System: *focimeters* (R 93) and *radiochromic film dosimetry systems for ionizing radiation processing of materials and products* (R 127). The total number of Recommendations applicable within the System was therefore 28 and would increase even more with the publication of new Recommendations. As already mentioned under item 9, there had been good opportunities during the last twelve months to inform other International Organizations about the developments of the System. The revision of the operational rules of the System was starting with some preparatory work having been done by the Bureau and would develop within TC 3/SC 5. Concerning certificates issued, their number had reached 540 at the time of the meeting, for ten (out of 28) categories of instruments covered by the System. The list of certificates on the OIML web site had been supplemented with information concerning manufacturers that had been granted OIML certificates, and the Authorities that had issued these certificates. Last but not least, the revision of existing Recommendations with a view to their application within the System was progressing satisfactorily, including in the field of utility meters.

In order to show the importance of reaching an agreement on mutual recognition of certificates, Mr. Kochsiek gave a description of the various tasks of the PTB within which was being established a system for mutual confidence in the three areas fundamental for metrology: industry, regulated areas (following ISO 17025) and international cooperation (following the ISO 9000 series). Costs to establish such systems could be evaluated to 5 million USD. An experience had already been gained concerning explosion protection. According to regulations, the PTB was responsible for this field and needed a formal accreditation which, according to a European Directive, should be a full accreditation by a German accreditation body. However, this certificate was not recognized outside Europe because this German body was not known by non-European bodies. Therefore, a supplementary full accreditation was obtained from an accreditation body recognized by the European Accreditation body (EA). Nevertheless there were problems in e.g. countries where a single national and official accreditation system for explosion protection did not exist (for example, in one of these countries, there were three different and private systems). Therefore, the PTB had had to develop, in addition to its two full accreditations, seven MoU's or letters of intent to reach mutual recognition of certificates in some 70 % of cases where such certificates were needed. The associated cost was between 100 000 and 200 000 USD to have these two full accreditations and seven agreements with peer reviews. Therefore, the PTB strategy was to install a system following the ISO 17025 or 9000 series with self-declaration, but not to try to obtain full accreditation in all these fields, owing to additional costs. In the field of legal metrology, it would be possible to have a full accreditation from 2000, if this appeared to be necessary. As a conclusion, Mr. Kochsiek said that a full accreditation in legal metrology was useful only when the accreditation body had expertise in legal metrology.

Mr. Faber recognized that what had been said by Mr. Kochsiek was very important for the future of cooperation and mutual recognition procedures within the OIML. Since there was no time to discuss this matter now, it would perhaps be possible to decide to have a thorough discussion on

another occasion. Mr. Vaucher agreed that it was a key matter for TC 3/SC 5 and that similar discussions had taken place within the working group on a mutual recognition agreement within the Meter Convention: matters of cost and feasibility to establish confidence were essential and it was concluded that it was not possible to rely on one possible way such as accreditation (which was a good tool but sometimes inadequate), but to use self-declaration which would be considered as equivalent to accreditation when supported by the results of key-comparisons. In addition, each laboratory should have a quality system and a special role would be given to regional metrology bodies in the evaluation of the declared capabilities. Mr. Nyström noted that the problem mentioned by Mr. Kochsiek resulted perhaps from the fact that in Germany, there were two accreditation systems according to whether the activity was in the voluntary or regulatory field, whereas in most other European countries there was a unique accreditation system. Mr. Johansen suggested that this kind of discussion should be referred to TC 3/SC 5 and Mr. Faber agreed with this proposal.

12.2 New Recommendations applicable within the System

The Committee agreed that the new versions of R 60 (*Metrological regulation of load cells*) and of R 65 (*Force measuring system of uniaxial material testing machines*) would become applicable within the System as soon as published. It also agreed that the Bureau should distribute the draft Annex (test report format) for R 129 (*Multi-dimensional measuring instruments*) to CIML Members for postal approval as quickly as possible so that the complete Recommendation would be published and would become applicable within the System after approval of the Annex.

Concerning R 60, Mr. Athané reminded the participants that this was the first time that a Recommendation which was applicable within the System was revised; it was therefore necessary to decide on practical provisions in line with the general rules as fixed by the operational rules of the System.

It was first discussed whether it would be possible to continue to deliver certificates against the 1991 edition of R 60 whereas a new edition had been approved and would be published soon, and if so up to which date.

Mr. Magana said that it was necessary to accept this, since manufacturers were obviously going to apply for such certificates during the coming months. It would be impossible to reject such applications and, therefore, the possibility to issue R 60-1991 certificates should remain open for at least one year. In addition, the 1991 edition of R 60 should remain available (e.g. on the OIML web site) as a reference for the certificates issued against it.

Mr. Birch suggested limiting this period to the time necessary for applications already made or going to be made to be dealt with, i.e. maximum a few months. However, if discussions concerning the transformation of R 60-1991 certificates into R 60-2000 certificates were to be delayed until e.g. the next CIML Meeting, a longer period should perhaps be necessary.

Mr. Chappell said that he would agree with Mr. Magana's proposal, provided that clear information concerning the existence of the new R 60 and other information is given by issuing authorities to manufacturers, so that they may make appropriate decisions concerning application for OIML certificates.

Mr. Engler agreed with these views and suggested that two dates should be fixed: the date until which applications according to the old version may be made (e.g. between one and three months after the issuing of R 60-2000) and the date until which certificates according to R 60-1991 may be issued. Mr. Athané said that it would be difficult to fix two dates since the time between an application and the issuing might considerably vary from one Issuing Authority to another. In addition, time should be left to manufacturers and to issuing authorities, as well as to legislators, to adapt to the new R 60.

Mr. Birch said that the final date to consider was that after which it would no longer be possible to issue certificates according to R 60-1991 in order to avoid such certificates being issued for perhaps years to come. This date having been fixed, each Issuing Authority would fix the deadline to receive applications, based on the duration of their own testing.

Mr. Birdseye said that the critical date was that of the application, since the duration of testing could be indeterminate. In fact for manufacturers it was important to know up to which date they would have the possibility to apply and the end of 2000 - as proposed - seemed acceptable.

As a conclusion to these discussions, Mr. Faber suggested that the Committee should accept the proposal made by France and the BIML and supported by the United Kingdom and other participants, and the Committee decided that applications for certificates according to R 60-1991 could be sent to Issuing Authorities up to 2000.12.31.

Concerning the procedures for transforming R 60-1991 certificates into certificates according to the new version of R 60, Mr. Chappell said that a paper was being developed within OIML TC 9.

Mr. Athané suggested that the Committee should agree that an Issuing Authority having delivered R 60-1991 certificates could issue, at the applicants' requests, certificates according to the new version of R 60 after having carried out only the additional and different tests as described in the document mentioned by Mr. Chappell. According to cases, additional partial test reports or new complete test reports would have to be prepared. Fees for these additional and different tests and for test reports would have to be fixed by the Issuing Authorities and the new certificates would be registered after payment of the registration fees. Mr. Athané also said that the Bureau would carry out an inquiry in order to ascertain which Issuing Authorities would be able to issue certificates according to the new version of R 60.

Mr. Magana said that this matter could be dealt with very simply by the Issuing Authorities themselves, without the need for too many specifications from the Bureau or the TC. When a manufacturer has been granted a R 60-1991 certificate and when the unchanged load cell is tested and found to comply with R 60-2000, then the Issuing Authority might deliver a new certificate based on additional tests; however, a new and complete test report should be developed. If the load cell needs to be modified to comply with the new R 60, then the Issuing Authority should be free to decide which additional tests should be carried out and which tests should be repeated since a number of characteristics of the load cell might have been modified.

Mr. Birch said that information concerning the TC 9 paper and procedure for transforming old R 60 certificates into new ones should be distributed as soon as available; however, a final decision would have to be made by the Committee and this could not be done before October 2000.

Mr. Chappell said that the comments presented during this meeting would be considered by the TC 9 Secretariat when finalizing the document mentioned. However, final approval by the CIML could be done by correspondence without waiting for the next meeting.

As a conclusion, Mr. Faber noted that the Committee could accept the proposals of Mr. Chappell and of the Bureau.

13 Preparations for the Eleventh Conference

13.1 Information concerning the organization of the Conference

Mr. Bennett confirmed the invitation of the United Kingdom to hold the Eleventh Conference (and CIML and other meetings) in London during the week 9–13 October 2000. The chosen venue was the

Queen Elizabeth II International Conference Centre. The provisional program was to open on Monday morning with the CIML Meeting, then the Conference would start on Monday afternoon and end on Friday morning, followed by a CIML Meeting. There would be a Development Council meeting on Wednesday and a technical visit was planned for the afternoon. Receptions were also being organized during the week, one given by the United Kingdom Government and one by the OIML.

13.2 Proposed agenda

Mr. Athané reminded the participants that some proposals had been prepared by the Bureau, including the “classical” items that each Conference must examine. In addition, the Bureau had suggested that a round-table should be organized during one half-day to discuss a specific subject of significant interest for the OIML. He suggested that the Committee should take a preliminary decision charging the Presidential Council with the choice of the topic amongst proposals which would have been submitted by CIML Members before the end of 1999.

Mr. Faber strongly supported this proposal, as did Mr. Birch who suggested organizing an “open” round-table to which people from the outside of the OIML could be invited. Mr. Athané welcomed this suggestion but pointed out that material arrangements would have to be carefully examined, since the arrangements of the meeting room for the Conference, with maximum 150 participants, would not be appropriate for an open round-table which perhaps 200 or 250 persons would attend. This would have to be examined with the United Kingdom hosts.

Mr. Boudissa pointed out that a number of topics of great interest for developing countries had been discussed during the week, especially during the Euro-Mediterranean round-table and the Development Council meeting. However, donor agencies had not participated in these meetings, although they had been invited. Therefore, he suggested that all necessary effort be made with a view to having these donor agencies actually attending the October 2000 meetings. Mrs. Annabi strongly supported this proposal and requested that a one-day meeting be organized to discuss the Euro-Mediterranean cooperation, before or after the OIML meetings.

Mr. Faber concluded by noting that the Committee could accept all these proposals and requested CIML Members to make their views and proposals known by the end of 1999.

13.3 Examination of a preliminary proposal for the 2001–2004 budget taking into consideration BIML staff requirements for that period

Mr. Faber reminded the participants that a written report had been prepared by the Bureau and sent to CIML Members some months prior to this meeting, proposing to maintain the BIML staff at its present level and to try to reach a zero increase in Member State contributions starting from their 2000 level and up to the end of the 2001–2004 financial period. He requested CIML Members to make their views known by the end of 1999 in order to make it possible for him (assisted by the Presidential Council and by the Bureau) to prepare a final draft budget which should be sent to OIML Member States not later than March 2000.

14 Report on BIML activities

A written report was distributed to all participants and will be published in the January 2000 issue of the OIML Bulletin.

15 Future Meetings

15.1 35th CIML Meeting (2000)

Mr. Faber reminded the participants that the next CIML Meeting would be held in London in October 2000.

15.2 36th CIML Meeting (2001)

Mr. Faber informed the participants that three invitations had been received in the following order: from Russia (without formal confirmation having yet been given), from Australia and, very recently, from Israel.

Mrs. Dori confirmed Israel's interest in hosting a CIML Meeting, in 2001 if possible, or else in 2002.

Mr. Faber requested the CIML to give him the mandate to make the final decision, the order of priority being that indicated above. This was accepted by the Committee.

16 Other matters

Mr. Magana gave some information concerning recent evolutions in the situation of metrology in France, following official declarations of the French Minister for Industry concerning the role of metrology, including its legal aspects. A copy of the declarations was made available to all participants.

17 Adoption of decisions

Draft decisions were submitted to participants for adoption. The final version of these decisions is reproduced on the following pages.

Closure

Mr. Faber evoked the main topics of discussions and decisions made by the Committee and expressed his satisfaction for the important results achieved. He expressed his thanks to the interpreters, the BIML staff, the observers from Corresponding Members and liaison institutions and to all attending persons for their active participation in the success of the meeting.

On behalf of all participants, he then expressed his sincere thanks and appreciation to Mrs. Annabi and to her colleagues and to all those who had so well organized the OIML meetings and led these to be so successful.

Mrs. Annabi expressed the pleasure of the Tunisian Authorities and of herself to have held an OIML meeting in Tunis. ■

Thirty-Fourth Meeting of the International Committee of Legal Metrology

– Decisions –

Opening addresses

The Committee took note of opening addresses delivered by Mr. Mondher Zenaïdi, Minister of Commerce of Tunisia, and by Mr. Gerard Faber, President of the International Committee of Legal Metrology.

Roll-call – Quorum

The Committee took note that 48 (out of 56) Member States were present or represented and that the quorum of three-quarters was therefore reached; the Committee also took note that seven international and regional organizations, as well as five Corresponding Members, were present.

Approval of the agenda

The proposed agenda was approved with some minor modifications.

1 Approval of the minutes of the 33rd CIML Meeting

The minutes of the 33rd CIML Meeting were approved without modification.

2 Member States and Corresponding Members

2.1 New Members - Expected accessions

The Committee took note that no new Member State had joined the OIML since its last meeting and that several Corresponding Members had been admitted or readmitted during this period; the Committee also took note of information on possible accessions during the coming year.

2.2 Situation of certain Members

The Committee was informed that the Bureau was maintaining close contacts with several OIML Member States that were significantly late in the payment of their dues but that no action should be initiated before the next meeting.

2.3 Implementation of the decision made by the Committee at its 33rd Meeting concerning increased participation of Corresponding Members in certain OIML activities

The Committee took note of information concerning the participation of certain Corresponding Members in CIML Meetings and in certain OIML TC's and SC's.

3 Financial matters

3.1 Adoption of the Auditor's report for 1998

The Committee approved the Auditor's report for 1998 without comment.

3.2 Examination of the financial situation for 1999

The Committee noted that the 1999 financial situation was expected to be fully in line both with the estimates made at the end of 1998 and with the decisions of the Tenth Conference.

3.3 Budget for the year 2000

The Committee accepted the Presidential Council's proposition concerning the 2000 budget, i.e. the budget voted by the Tenth Conference for 2000 is maintained.

4 CIML Presidency

1) *CIML President*

The Committee expressed the view that there would be no problem for Mr. Faber to be reelected at the next CIML Meeting but considered that it was appropriate to allow some time for possible candidates to make themselves known in writing to Vice-President Chappell before June 2000.

2) *CIML First Vice-President*

The Committee, having noted that Vice-President Chappell was not willing to renew his mandate, decided that Prof. Kochsiek would become First Vice-President at the time of the next CIML Meeting and that, on this occasion, a second Vice-President will be elected amongst candidates who will have made themselves known in writing to President Faber before June 2000 or who will have been proposed by other CIML Members to President Faber within the same deadline.

5 Director of the Bureau

The Committee approved the terms of President Faber's letter dated 1999.03.09 and in addition decided that the duration of the transition period between the present and the new Directors would have to be fixed by the President at the time when the new Director is appointed.

Concerning the appointment of the new Director, the Committee established a Selection Committee comprising the CIML President and the two Vice-Presidents, Mrs. Annabi, Mr. Birch and Mr. Johnston and requested its President to start the procedure immediately after this CIML Meeting with a view to presenting one sole candidate at the 2000 CIML Meeting.

6 OIML Long-term policy: implementation of the decisions made by the Committee at its 33rd Meeting concerning the output of the Braunschweig International Seminar and of the Birkeland Report

The Committee examined a plan of actions aimed at implementing the decisions of its 33rd Meeting and adopted it with some modifications, of which the BIML has taken note.

7 Report on the activities of the Presidential Council

The Committee endorsed the conclusions of a report from its President concerning the terms of reference and composition of the Presidential Council, and the way in which Council deliberations will be reported to the Committee.

8 Development Council

8.1 Report on the Development Council meeting of October 5, 1999

and

8.2 Work program of the Development Council

The Committee took note of a report presented by Mrs. Annabi, Chairperson of the OIML Development Council, concerning the Development Council meeting held just prior to the CIML Meeting; the Committee expressed its satisfaction for the work already accomplished and endorsed the resolutions of the meeting.

8.3 Liaisons with relevant international and regional organizations

The Committee supported Mrs. Annabi's views concerning cooperation between the OIML Development Council and various international and regional organizations.

9 Liaisons with international and regional organizations

9.1 World Trade Organization (WTO)

The Committee took note with extreme interest of a presentation on the WTO/TBT Committee made by Mrs. Liu, Economic Officer at the WTO, which focused on WTO activities connected with the development and application of international standards, bi-lateral recognition agreements, accreditation and certification procedures, etc. and their possible impact on technical barriers to trade.

The presentation was followed by a number of questions and the Committee requested the Bureau to examine with Mrs. Liu the possibility of publishing a comprehensive report on her presentation and subsequent discussions together with the minutes of the CIML Meeting.

9.2 Standardization organizations (in particular: ISO, IEC, UN/ECE)

The Committee took note of information given by the Bureau concerning cooperation with ISO, IEC and UN/ECE.

9.3 Accreditation organizations (in particular: ILAC and IAF)

The Committee took note of information given by the Bureau concerning cooperation with ILAC and IAF.

9.4 Regional Legal Metrology Organizations (RLMO's)

The Committee took note of information given by Representatives of the various Regional Legal Metrology Organizations present at the meeting. The Committee also took note of information from Mr. Magana concerning an emerging cooperation in legal metrology in the Euro-Mediterranean region, and of the request from this cooperation to have OIML D 1 *Law on Metrology* and papers on equipment revised and reissued as quickly as possible.

9.5 Regional organizations having activities connected with legal metrology (in particular: European Commission and CEN/CENELEC)

The Committee took note of information given by the Bureau and by Dr. Bennett, on behalf of both the United Kingdom and WELMEC, concerning the development of a European Directive on measuring instruments (MID) and the associated development of OIML Normative Documents which would give a presumption of conformity with the MID metrological requirements. The Committee also took note of remarks from Vice-President Chappell concerning the necessity to clearly inform all OIML Members about these developments and to act in such a way that the creation of regional technical barriers to trade will be avoided.

The Committee was informed that a meeting between the BIML Director and the Secretary General of CEN and that of CENELEC was expected to be held soon.

9.6 Others (BIPM, WHO, ...)

The CIML President informed the Committee that there had been practically no contact with the BIPM over the past twelve months but that he would attend the next CGPM in Paris in the week following this CIML Meeting.

Concerning the WHO, the Committee was informed that the BIML was intending to renew contacts with this organization.

Mr. Birch noted that contacts should be established or developed between the OIML and (i) the Codex Alimentarius (in particular, for the revision of R 87) and (ii) international and regional consumers' associations.

10 Activities linked with mutual recognition of test results, accreditation, etc.

The Committee took note of a report delivered by Vice-President Chappell concerning the OIML activities connected with conformity assessment and multi-lateral recognition of OIML pattern approvals, which will now be developed within a new subcommittee TC 3/SC 5 under the joint responsibility of the USA and the BIML. Dr. Chappell's report also covered activities connected with prepackaged products (revision of R 87) and the possible establishment of an OIML mark for packagers.

11 Technical activities

11.1 Work program of OIML TC's/SC's

11.1.1 *Establishment of new SC's and their work programs*

- splitting up of TC 15 *Measuring instruments for ionizing radiations* into two subcommittees;
- establishment of TC 3/SC 5; disbanding of the working group on accreditation and of the TAG_{cert}

The Committee approved these proposals.

11.1.2 *New work projects proposed by TC's and SC's*

The Committee approved these proposals.

11.2 Examination of the situation of certain TC's and SC's

11.2.1 *Vacant TC and SC*

- TC 13: the Committee noted that the United Kingdom was considering volunteering for the secretariat of this TC;
- TC 8/SC 1: the Committee allocated the secretariat of this SC to Austria.

11.2.2 *Allocation/transfer of responsibility*

The Committee approved these proposals.

11.2.3 *Proposals on future and urgent technical activities*

- establishment of a new TC or SC on software: the Committee decided to create two subcommittees within TC 5 (for which a new designation will have to be found) - SC 1 on *Electronic instruments* (The Netherlands) and SC 2 on *Software* (France and Germany);
- revision of D 1 *Law on Metrology* - measurement uncertainty in legal metrology - prepackages: Dr. Chappell confirmed that the USA was working actively on these three topics.

11.3 Approval of draft Recommendations

The Committee approved the following draft international Recommendations:

- PR 1 *Metrological regulation for load cells* (revision of R 60);
- PR 2 *Multi-dimensional measuring instruments* (which will be issued together with the corresponding test report format when the latter is approved by correspondence);
- PR 3.2 *Water meters intended for the metering of cold potable water* (revision of R 49, including electronic meters);
- PR 4 *Force measuring system of uniaxial material testing machines* (revision of R 65).

11.4 Availability of OIML publications on paper, electronic media and via Internet; use of Internet within the OIML

The Committee took note of information on this topic.

12 OIML Certificate System

12.1 General information

The Committee took note of information on this topic.

12.2 New Recommendations applicable within the System

The Committee decided that R 60 and R 65 would become applicable within the System when published, and that R 129 *Multi-dimensional measuring instruments* would become applicable when the test report is approved and the complete Recommendation published.

Concerning the specific case of R 60, the Committee requested the Bureau and issuing authorities to rapidly inform manufacturers of load cells of the new R 60 and decided that applications for certificates against the former 1991 edition of R 60 could be accepted by issuing authorities up to the end of 2000. Concerning certificates already issued against R 60-1991, the applicants of which would wish to receive certificates against R 60-2000, the Committee decided that the issuing authorities concerned could limit the additional examinations and tests according to the paper currently being developed within TC 9 and would reissue a new certificate with either a new or a supplemented test report; the costs for this work would have to be fixed by issuing authorities and a registration fee would have to be paid to the BIML.

13 Preparations for the Eleventh Conference

13.1 Information concerning the organization of the Conference

The Committee took note of information given by Dr. Bennett concerning preparations for the Eleventh Conference.

13.2 Proposed agenda

The Committee considered it appropriate to organize a half-day Round Table during the Eleventh Conference on a subject to be chosen by the Presidential Council in line with propositions that the CIML will send to the Bureau before the end of 1999; the Presidential Council and Dr. Bennett will examine the possibility of its being an open Round Table.

13.3 Examination of a preliminary proposal for the 2001–2004 budget taking into consideration BIML staff requirements for that period

The Committee took note of a preliminary written proposal on this subject and requested its Members to make known their comments and those of their countries' financial departments before the end of 1999 so that a draft budget could be drawn up by the Presidential Council and sent to all OIML Members by the end of February 2000.

President Faber recommended that when preparing their comments, CIML Members should take into account not only the preliminary written proposal but also the discussions held during this Committee meeting, and in particular the decisions that were taken concerning the new working plan and the demands that were approved concerning priorities for certain projects defined in the working plan.

14 Report on BIML activities

The Committee took note of a report distributed by the Bureau.

15 Future Meetings

15.1 35th CIML Meeting (2000)

This meeting will be held in London in conjunction with the Eleventh Conference.

15.2 36th CIML Meeting (2001)

Invitations were received, in order of priority, from the Russian Federation, Australia and Israel; a decision will be made in due course but it was noted that Israel's invitation could equally apply to the 2002 Committee Meeting.

16 Other matters

The Committee took note of information given by Mr. Magana concerning a speech made by the French Minister for Industry concerning the development of metrology in France. ■

Presidential Council: Terms of reference and other information

Terms of reference

The Presidential Council acts as an *advisory body* to the CIML President, especially for the following matters:

- Composition of the Presidential Council;
- OIML strategy and policy;
- Financial situation of the OIML;
- Personnel matters: positions of the CIML President and Vice-Presidents, BIML Director and Assistant Directors;
- Agenda of the Conference and CIML Meetings.

The Presidential Council can also advise the President on other matters.

Periodicity of meetings

The Presidential Council meets at least twice a year, usually in February and in the Autumn (immediately before and/or after the CIML Meeting).

Composition of the Council

The Presidential Council includes:

- The CIML President and Vice-Presidents;
- The Chairperson of the OIML Development Council;
- Five to seven CIML Members, active and experienced, chosen by the CIML President so as to represent various interests (industrialized and developing countries, regions, etc.); these five to seven CIML Members are appointed as Presidential Council Members for a three-year term (usually starting when the CIML President is elected or re-elected) with the possibility of reappointment for three-year terms without limitation.

Secretariat of the Presidential Council - Records of meetings

The BIML Director is the Secretary of the Presidential Council. He organizes the meetings and prepares the minutes to be distributed to Council Members and, as appropriate, to other participants in the meetings.

He also prepares a summary of discussions for the information of CIML Members. In addition, the activities of the Presidential Council must be the subject of a report given by the CIML President at each CIML Meeting. ■